

The Sikh Gurdwaras Act, 1925

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Union of India - Act

The Sikh Gurdwaras Act, 1925

UNION OF INDIA

India

The Sikh Gurdwaras Act, 1925

Act 8 of 1925

Published on 12 October 1925

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[Amended by THE SIKH GURDWARAS (AMENDMENT) ACT, 2016 (Act 21 of 2016) on
5 May 2016

]

The Sikh Gurdwaras Act, 1925

Punjab Act

8 of 1925

1096.

AN-ACT.An Act to provide for the better administration of certain Sikh Gurdawars and the inquiries into matter connected therewith.

Preamble. - Whereas it is expedient to provide for the better administration of certain Sikh Gurdawaras and for inquiries into matters and settlement of disputes connected therewith, and whereas the previous sanction of the

Governor-General has been obtained to the passing of this Act; it is hereby enacted as follows :-

Part 1 ? Chapter I

Preliminary

1.

Short title, extent and commencement. -

(1)

This Act may be called the Sikh Gurdwaras Act, 1925.

(2)

[It extends to the territories which, immediately before the 1st November, 1956, were comprised in the States of Punjab and Patiala and East Punjab States Union.]

[Substituted for the words 'It extends to Punjab' by Punjab Act No. 1 of 1959 section 2(1).]

(3)

It shall come into force on such date as the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may by notification appoint in this [behalf]

[Added by Punjab Act No. 1 of 1959, Section 2(2).]

and, in the extended territories, on the commencement of the Sikh Gurdwaras (Amendment) Act, 1959 (hereinafter referred to as the Amending Act.)]

(4)

The Sikh Gurdwaras and Shrines, Act, 1922 [4 of 1922], is hereby repealed.

This Act came into force on the 1st day of November, 1925, see notification No. 4288-S, dated 12th October, 1925, in the Punjab Gazette, 1925, Part I, page 712.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context -

(1)

"Board" means the Board constituted under the provisions of Part III.

(2)

"Commission" means the Judicial Commission constituted under the provisions of Part III.

(3)

(i)

"Committee" means a committee of management constituted under the provisions of Part III.

(ii)

[* * * *]

[Omitted by Punjab Act No. 53 of 1953.]

.

[(3-A) 'the extended territories' means the territories, which immediately before the 1st November, 1956, were comprised in the State of Patiala and East Punjab States Union;]

[Inserted by Punjab Act No. 1 of 1959, Section 3(1).]

.

(4)

(i)

"Office" means any office by virtue of which the holder thereof participates in the management or performance of public worship in a gurdwara or in the management or performance of any rituals or ceremonies observed therein and

"office-holder" means any persons who holds an office.

(ii)

"Present Office-holder" means a person who on the commencement of this Act. [or in the case of the extended territories, on the commencement of the Amending Act as the case may be,]

[Added by Punjab Act No. 1 of 1959, Section 3(2)(a).]

holds an office.

(iii)

"Past office-holder" means a person who has been an office-holder but ceased to be an office-holder before the commencement of this Act [or, in the case of the extended territories, before the commencement of the Amending Act as the case may be]

[Added by Punjab Act No. 1 of 1959, Section 3(2)(b).]

(iv)

"Hereditary office" means an office the succession to which before the first day of January, 1920, [or, in the case of the extended territories, before the 1st day, of November, 1956, as the case may be]

[Inserted by Punjab Act No. 1 of 1959, Section 3(2)(e).]

, devolved, according to hereditary right or by nomination by the office-holder for the time being, and "hereditary office-holder" means the holder of a hereditary office.

(v)

"[Present hereditary office-holder" means a person who on the commencement of this Act [or, in the case of the extended territories, on the commencement of the Amending Act as the case may be]

[Inserted by Punjab Act No. 1 of 1959, Section 3(2)(a).]

, is a hereditary office-holder.

(vi)

"Past hereditary office-holder" means a person who has been a hereditary office-holder but ceased to be such office-holder before the commencement of this Act [or, in the case of the extended territories, before the commencement of the Amending Act as the case may be.]

[Added by Punjab Act No. 1 of 1959, Section 3(2)(b).]

(vii)

"Minister" means as office-holder to whom either solely or alongwith others the control of the management or performance of public worship in a gurdwara and of the rituals and ceremonies, observed therein is entrusted :

[Provided that an office-holder to whom either solely or alongwith others the performance of public worship in a Gurdwara and of the rituals and ceremonies observed therein is not entrusted directly shall not be deemed to be a Minister for the purposes of sections 134 and 135.]

[Added by Punjab Act No. 1 of 1959, Section 3(2)(d).]

(5)

"Police Station area" means a local area specified by the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government under the provisions of clause (s) of sub-section (1) of Section 4 of the Code of Criminal Procedure, 1898.

(6)

"Prescribed" means prescribed [-]

[The words [by the State Government] omitted by MOH Notification No. S.O.63(E), dated 3.2.1978.]

by rules made under this Act.

(7)

"Presumptive successor" where the succession to the office devolves according to hereditary right; means the person next in succession to a hereditary office-holder, or, where the succession to the office devolves by nomination made by the hereditary office-holder for the time being, means any chela so nominated before the first day of December, 1924 [or, in the case of the extended territories, before the 1st day of November, 1956, as the case may be.]

[Added by Punjab Act No. 1 of 1959, Section 3(3).]

(8)

"Resident" in any place means any person having a fixed place of abode or owning immovable property or cultivating land or practising a profession, or carrying on business, or personally working for gain, in that place.

(9)

["Sikh" means a person who professes the Sikh religion or, in the case of a deceased person, who professed the Sikh religion or was known to be a Sikh during his lifetime.

[Clause 9 was substituted by Punjab Act

3 of 1930

, section 2.The Amendment shall be applicable to all claims, petitions and suits in which the recording of evidence has

not been concluded before the tribunal at the commencement of this Act, vide Punjab Act 3 of 1930

, section 11.]

If any question arises as to whether any living person is or is not a Sikh, he shall be deemed, respectively to be or not to be a Sikh according as he makes or refuses to make in such manner as the [State] Government may prescribe the following declaration :-

I solemnly affirm that I am a Sikh, that I believe in the Guru Granth Sahib, that I believe in the Ten Gurus, and that I have no other religion.]

(10)

["Amritdhari Sikh" means and includes every person who has taken khende-ka-amrit or khanda pahul prepared and administered according to the tenets of Sikh religion and rites at the hands of five pyaras or `beloved ones';]

[Inserted by Punjab Act 11 of 1944, Section 2(b).]

[(10-A) `Sahjdhari Sikh' means a person -

[Inserted by Punjab Act No. 11 of 1944, Section 2(b).]

(i)

who performs ceremonies according to Sikh rites;

(ii)

who does not use tobacco or Kutha (Halal meat) in any form;

(iii)

who is not a Patit; and

(iv)

who can recite Mul Manter.]

5.

(11)

"Patit" means a person who being a keshadhari Sikh trims or shaves his beard or keshas or who after taking amrit commits any one or more of the four kurahits].

(12)

["Notified Sikh Gurdwara" means any gurdwara declared by notification by the [State]

[The old Clauses 10, 11 and 12, renumbered as 12, 13, and 14 by Punjab Act 11 of 1944, Section 2(b).]

Government under the provisions of this Act to be a Sikh Gurdwara.]

(13)

["Treasury" means a Government Treasury or sub-treasury and includes any bank to which the Government treasury business has been made over.]

[The old Clauses 10, 11 and 12, renumbered as 12, 13 and 14 by Punjab Act 11 of 1944, Section 2(b).]

(14)

["Tribunal" means a tribunal constituted under the provisions of section 12.]

[The old Clauses 10, 11 and 12, renumbered as 12, 13 and 14 by Punjab Act 11 of 1944, Section 2(b).]

(15)

["Election" means an election to fill a seat or seats in the Board or Committee constituted under Sections 43, 86 and 87.]

[Inseerted by Act 25 of 1954, Section 2.]

(16)

"Constituency" means a constituency for the election of a member or members of the Board or Committee.

(17)

["Commissioner, Gurdwara Election" means the officer appointed by the Government of the State of Punjab, Haryana or Himachal Pradesh or the Administrator of the Union Territory of Chandigarh, as the case may be, to perform the duties of the Commissioner, Gurdwara Elections in relation to the Election of members of committees constituted for the Notified Sikh Gurdwara located within the State or the Union Territory.

[Substituted vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

(17-A) "Chief Commissioner, Gurdwara Elections" means the officer appointed by the Central Government under Section 47A.]

Chapter II

Petitions To [State]

[Substituted For The words 'Provincial' By The Adaptation Of Laws Order, 1950.]

Government Relating To Gurdwaras

3.

List of property of scheduled Gurdwara to be forwarded to the State Government.

(1)

Any Sikh or any present office-holder of a gurdwara specified in schedule I [or, added thereto by the Amending Act, may forward to the State Government through the appropriate Secretary to Government so as to reach the Secretary within ninety day of the commencement of this Act, or, in the case of the extended territories, within one hundred and eighty days of the commencement of the Amending Act, as the case may be]

[Substituted for the words 'may forward to the State Government through the appropriate Secretary to Government so as to reach the Secretary within ninety days from the commencement of this Act' by Punjab Act No. 1 of 1959, section 4(1).]

, a list, signed and verified by himself, of all rights, titles or interests in immovable properties situated in Punjab inclusive of the gurdwara and in all monetary, endowments yielding recurring income or profit received in Punjab which he claims to belong, within his knowledge, to the gurdwara; the name of the person in possession of any such right, title or interest, and if any such person is insane or a minor, the name of his legal or natural guardian, or if there is no such guardian, the name of the person with whom the insane person or minor resides or is residing, or if there is no such person, the name of the person actually or constructively in possession of such right, title or interest on behalf of the insane person or minor, and if any such right title or interest is alleged to be in possession of the gurdwara through any person, the name of such person, shall be stated in the list; and the list shall be in such form and shall contain such further particulars as may be prescribed.

[Explanation. - For the purposes of this section and all other succeeding sections; the expression "Punjab" shall mean the State of Punjab as formed by section 11 of the States Reorganization Act, 1956.]

[Added by Punjab Act No. 1 of 1959, Section 4(2).]

(2)

Declaration of scheduled gurdwara and publication of list forwarded under sub-section (1) in a consolidated list. - On receiving a list duly forwarded under the provisions of sub-section (1) the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government shall, as soon as may be, publish a notification declaring that the gurdwara to which it relates is a Sikh Gurdwara and, after the expiry of the period provided in sub-section (1) for forwarding lists shall, as soon as may be, publish by notification a consolidated list in which all rights, titles and interests in any such properties as are described in sub-section (1) which have been included in any list duly forwarded, shall be included, and shall also cause the consolidated list to be published, in such manner as may be prescribed, at the headquarters of the district and of the tahsil and in the revenue estate where the gurdwara is situated, and at the headquarters of every district and of every tahsil and in every revenue estate in which any of the immovable properties mentioned in the consolidated list is situated and shall also give such other notice thereof as may be prescribed.

(3)

Notices of claims to property entered in the consolidated list to be sent to persons shown as in possession. - The [State]

[Substituted for the word [Provincial] by the Adaptation of Law Orders, 1950.]

Government shall also, as soon as may be; send by registered post a notice of the claim to any right, title or interest included in the consolidated list to each of the persons named therein as being in possession of such right, title or interest either on his own behalf or on behalf of an insane person or minor or on behalf of the gurdwara, provided that no such notice need be sent if the person named as being in possession is the person who forwarded the list in which the right, title or interest was claimed.

(4)

Effect of publication of declaration and consolidated list under sub-section (2). - The publication of a declaration and of a consolidated list under the provisions of sub-section (2) shall be conclusive proof that the provisions of sub-sections (1), (2) and (3) with respect of such publication have been duly complied with and that the gurdwara is a Sikh Gurdwara, and the provisions of Part II shall apply to such gurdwara with effect from the date of the publication of the notification

declaring it to be a Sikh Gurdwara.

4.

Effect of omission to forward a list under section 3.

- If in respect of any gurdwara specified in schedule I no list has been forwarded under the provisions of sub-section (1) of Section 3, the [State]

[Substituted for the word [Provincial] by the Adaptation of Law Orders, 1950.]

Government shall, after the expiry of ninety days from the commencement of this Act, [or, in case of the extended territories, after the expiry of one hundred and eighty days from the commencement of the Amending Act, as the case may be]

[Substituted by Punjab Act No. 1 of 1959, Section 5.]

, declare by notification that such gurdwara shall be deemed to be excluded from specification in schedule I.

5. Petitions of claim to property included in a consolidated list.

(1)

Any person may forward to the [State]

[Substituted for the word [Provincial] by the Adaptation of Law Orders, 1950.]

Government through the [appropriate Secretary to Government]

[Substituted for the words 'Secretary to Government, Transferred Departments,' by the Government of India (Adaptation of Indian Laws) Order, 1937.]

so as to reach the Secretary within ninety days [or, in the case of the extended territories, within one hundred and eighty days]

[Inserted by Punjab Act No. 1 of 1959, Section 6.]

from the date of the publication by notification of the consolidated list under the provisions of sub-section (2) of Section 3, a petition claiming a right, title or interest in any property included in such consolidated list except a right, title or interest in the gurdwara itself.

(2)

Signing and verification of petitions under sub-section (1). - A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the persons forwarding it in the manner provided in the Code of Civil Procedure, 1908 (5 of 1908), for the signing and verification of plaints, and shall specify the nature of the right, title or interest claimed and the grounds of the claim.

(3)

Notification of property not claimed under sub-section (1) and effect of such notification. - The [State]

[Substituted for the word [Provincial] by the Adaptation of Law Orders, 1950.]

Government shall, as soon as may be, after the expiry of the period for making a claim under the provisions of sub-section (1) publish a notification specifying the rights, titles or interests in any properties in respect of which no such claim has been made; and the publication of the notification shall be conclusive proof of the fact that no such claim was made in respect of any right, title or interest specified in the notification.

6.

Claim for compensation by a hereditary office-holder of a Notified Sikh Gurdwara or his presumptive successor.

(1)

Any past or present hereditary office-holder of a gurdwara in respect of which a notification has been published under the provisions of sub-section (2) of Section 3 declaring it to be a Sikh Gurdwara or a presumptive successor of such office-holder may forward to the [State]

[Substituted for the word [Provincial] by the Adaptation of Law Orders, 1950.]

Government through the [appropriate Secretary to Government]

[Substituted for the words 'Secretary to Government, Transferred Departments,' by the Government of India (Adaptation of Indian Laws) Order, 1937.]

so as to reach the Secretary within ninety days from the date of the publication of such notification a petition claiming to be awarded compensation on the grounds that such office-holder has been unlawfully removed from his office after the first day of January, 1920, [or, in the case of the extended territories, after the 1st day of November, 1956, as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, Section 7.]

and before the date of the publication of the notification, and that such office-holder or his presumptive successor has suffered or will suffer pecuniary loss in consequence of the gurdwara having been declared to be a Sikh Gurdwara.

Signing and verification of petitions under sub-section (1). - (2) A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding it in the manner provided in the Code of Civil Procedure, 1908 (5 of 1908), for the signing and verification of plaints.

7.

Petitions to have a gurdwara declared a Sikh Gurdwara.

(1)

Any fifty or more Sikh worshippers of a gurdwara, each of whom is more than twenty-one years of age and was on the commencement of this Act [or, in the case of the extended territories from the commencement of the Amending Act] [Inserted by Punjab Act No. 1 of 1959, Section 8(a).]

resident in the police station area in which the gurdwara is situated, may forward to the [appropriate Secretary to Government]

[Substituted for the words 'Secretary to Government, Transferred Departments,' by the Government of India (Adaptation of Indian Laws) Order, 1937.]

so as to reach the Secretary within one year from the commencement of this Act or within such further period as the [State]

[Substituted for the words 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may by notification fix for this purpose, a petition praying to have the gurdwara declared to be a Sikh Gurdwara:

Provided that the [State]

[Substituted for the words 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may in respect of any such gurdwara declare by notification that a petition shall be deemed to be duly forwarded whether the petitioners were or were not on the commencement of this Act [or, in the case of the extended territories, on the commencement of the Amending Act, as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, Section 8(b).]

residents in the police station area in which such gurdwara is situated, and shall thereafter deal with any petition that may be otherwise duly forwarded in respect of any such gurdwara as if the petition had been duly forwarded by petitioners who were such residents:

Provided further that no such petition shall be entertained in respect of any institution specified in schedule I or schedule II unless the institution is deemed to be excluded from specification in schedule I under the provisions of section 4.

(2)

List of property claimed for the gurdwara and of persons in possession thereof to accompany a petition under sub-section (1). - A petition forwarded under the provisions of sub-section (1) shall state the name of the gurdwara to which it relates and of the district, tahsil and revenue estate in which it is situated, and shall be accompanied by a list, verified and signed by the petitioners, of all rights, titles or interest in immovable properties situated in Punjab inclusive of the gurdwara and in all monetary endowments yielding recurring income or profit received in Punjab, which the petitioners claim to belong within their knowledge to the gurdwara the name of the person in possession of any such right, title or interest, and if any such person is insane or a minor, the name of his legal or natural guardian, or if there is no such guardian, the name of the persons with whom the insane person or minor resides or is residing, or if there is no such person, the name of the person actually or constructively in possession of such right, title or interest on behalf of the insane person or minor, and if any such right, title or interest is alleged to be in possession of the gurdwara through any person the name of such person shall be stated in the list; and the petition and the list shall be in such form and shall contain such further particulars as may be prescribed.

(3)

Publication of petition and list received under sub-sections (1) and (2). - On receiving a petition duly signed and forwarded under the provisions of sub-section (1) the [State]

[Substituted for the words 'Provincial' by the Adaptation of Laws Order, 1950.]

Government shall as soon as may be, publish it along with the accompanying list, by notification, and shall cause it and the list to be published, in such manner as may be prescribed, at the headquarters of the district and of the tahsil and in the revenue estate in which the gurdwara is situated, and at the headquarters of every district and of every tahsil and in

every revenue estate in which any of the immovable properties mentioned in the list is situated and shall also give such other notice thereof as may be prescribed :

[Provided that such petition may be withdrawn by notice to be forwarded by the Board so as to reach the [appropriate Secretary to Government]

[Proviso added by Punjab Act 4 of 1932, Section 3. It came into force on 1st January, 1933, vide Punjab Government notification No. 2695 (H-G/Gurdwara) dated 19th December, 1932.]

, at any time before publication, and on such withdrawal it shall be deemed as if no petition had been forwarded under the provisions of sub-section (1)].

(4)

Notice of claims to property to be sent to persons shown in the list as in possession. - The [State]

[Substituted for the words 'Provincial' by the Adaptation of Laws Order, 1950.]

Government shall also, as soon as may be, send by registered post a notice of the claim to any right, title or interest included in the list to each of the persons named therein as being in possession of such right, title or interest either on his own behalf or on behalf of an insane person or minor or on behalf of the gurdwara :

Provided that no such notice need be sent if the person named as being in possession is a person who joined in forwarding the list.

(5)

Effect of publication of petition and list under sub-section (3). - The publication of a notification under the provisions of sub-section (3) shall be conclusive proof that the provisions of sub-sections (1), (2), (3) and (4) have been duly complied with.

8.

Petition to have it declared that a place asserted to be a Sikh Gurdwara is not such a gurdwara.

- When a notification has been published under the provisions of sub-section (3) of Section 7 in respect of any gurdwara, and hereditary office-holder or any twenty or more worshippers of the gurdwara, each of whom is more than twenty-one years of age and was on the commencement of this Act [or, in the case of the extended territories, on the commencement of the Amending Act, as the case may be]

[Inserted by Punjab Act No. 1 of 1959, section 9(a).]

, a resident of a police station area in which the gurdwara is situated may forward to the [State]

[Substituted for the words 'Provincial' by the Adaptation of Laws Order, 1950.]

Government, through the [appropriate Secretary to Government]

[Substituted for the words 'Secretary to Government, Transferred Departments,' by the Government of India (Adaptation of Indian Laws) Order, 1937.]

so as to reach the Secretary within ninety days from the date of the publication of the notification, a petition signed and verified by the petitioner, or petitioners, as the case may be, claiming that the gurdwara is not a Sikh Gurdwara, and may in such petition make a further claim that any hereditary office-holder or any person who would have succeeded to such office-holder under the system of management prevailing before the first day of January, 1920 [or, in the case of the extended territories, before the 1st day of November, 1956, as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, Section 9(d).]

may be restored to office on the grounds that such gurdwara is not a Sikh Gurdwara and that such office-holder ceased to be an office-holder after that day :

Provided that the [State]

[Substituted for the words 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may in respect of any such gurdwara declare by notification that a petition of twenty or more worshippers of such gurdwara shall be deemed to be duly forwarded whether the petitioners were or were not on the commencement of this Act [or, in the case of the extended territories, on the commencement of the Amending Act, as the case may be]

[Inserted by Punjab Act No. 1 of 1959, Section 9(d).]

, resident in the police station area in which such gurdwara is situated, and shall thereafter deal with any petition that may be otherwise duly forwarded in respect of any such gurdwara as if the petition had been duly forwarded by petitioners who were such residents.

9.

Effect of omission to present a petition under section 8.

(1)

If no petition has been presented in accordance with the provisions of section 8 in respect of a gurdwara to which a notification published under the provisions of sub-section (3) of Section 7 relates, the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government shall after the expiration of ninety days from the date of such notification, publish a notification declaring the gurdwara to be a Sikh Gurdwara.

(2)

Effect of publication of a notification under sub-section (1). - The publication of a notification under the provisions of sub-section (1) shall be conclusive proof that the gurdwara is a Sikh Gurdwara, and the provisions of Part III shall apply to the gurdwara with effect from the date of the publication of the notification.

10.

Petition of claim to property including in a list published under sub-section (3) of Section 7.

(1)

Any person may forward to the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government through the [appropriate Secretary to Government]

[Substituted for the words 'Secretary to Government, Transferred Departments,' by the Government of India (Adaptation of Indian Laws) Order, 1937.]

so as to reach the Secretary within ninety days from the date of the publication of a notification under the provisions of sub-section (3) of Section 7, a petition claiming a right, title or interest in any property included in the list so published.

(2)

Signing and verification of petitions under sub-section (1). - A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding it in the manner provided by the Code of Civil Procedure, 1908(5 of 1908), for the signing and verification of plaints, and shall specify the nature of the right, title or interest claimed and the grounds of the claim.

(3)

Notification of property not claimed under sub-section (1) and effect of such notification. - The [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government shall, as soon as may be, after the expiry of the period for making a claim under the provisions of sub-section (1) publish notification, specifying the rights, titles or interest in any properties in respect of which no such claim has been made, and the notification shall be conclusive proof of the fact that no such claim was made in respect of any right, title or interest specified in the notification.

11.

Claim for compensation by a hereditary office-holder of gurdwara notified under section 7 or his presumptive successor.

(1)

Any past or present hereditary office-holder of a gurdwara in respect of which a notification has been published under the provisions of sub-section (3) of Section 7 or a presumptive successor of such office-holder may forward to the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government through the [appropriate Secretary to Government]

[Substituted for the words [Secretary to Government, Transferred Departments,] by the Government of India (Adaptation of Indian Laws) Order, 1937.]

so as to reach the Secretary within ninety days from the date of the publication, a petition claiming to be awarded compensation on the grounds that such office-holder has been unlawfully removed from his office after the firstly day of January, 1920 [or, in the case of the extended territories, as the 1st day of November, 1956, as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, section 10.]

and before the date of such publication, and that such office-holder or his presumptive successor has suffered or will suffer pecuniary loss if the gurdwara is declared to be a Sikh Gurdwara.

Signing and verification of petitions under sub-section (1). - (2) A petition forwarded under the provisions of sub-section (1) shall be signed and verified by the person forwarding in the manner provided in the Code of Civil Procedure, 1908 (5 of 1908), for the signing and verification of plaints.

Chapter III

Appointment Of And Proceedings Before A Tribunal

12.

Constitution and procedure of tribunal for purposes of the Act.

(1)

For the purpose of deciding claims made in accordance with the provisions of this Act the [State]
[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government may from time to time by notification direct the constitution of a tribunal or more tribunals than one and may in like manner direct the dissolution of such tribunal or tribunals.

(2)

A tribunal shall consist of a president [-]

[The words [appointed by notification by the Governor-General in Council] which were inserted by the Sikh Gurdwaras (Supplementary) Act, 1925 (XXIV of 1925), section 3(a) were omitted by the Government of India (Adaptation of Indian Laws) Order, 1937.]

and two other members appointed by notification by the [State] Government.

(3)

The president of a tribunal shall be [a person who is or has been]

[Inserted by Punjab Act No. 1 of 1959, Section 11.]

a Judge of the High Court and each other member shall be -

(i)

a District Judge or a Subordinate Judge of the first class; or

(ii)

a barrister of not less than ten years' standing; or

(iii)

a person who has been a pleader of any Court [or any Court which is a High Court within the meaning of clause (24) of section 3 of the General Clause Act, 1897 (

10 of 1897

)]

[Inserted by Punjab Act 13 of 1926, section 2. This amendment has been given retrospective effect by Punjab Act 13 of 1926, section 3, which reads as follows;]

for an aggregate period of not less than ten years.

(4)

The members of a tribunal while they continue as such shall be paid by the [State] Government such remuneration as may from time to time be fixed by the [State] Government [* * * *]

[The words [or in the case of the president by the Governor-General in Council] inserted by section 3(b) of Act 24 of 1925

were omitted by the Government of India (Adaptation of Indian Laws) Order, 1937.]

and shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code (21 of 1860).

(5)

[* * * * *]

[Sub-section (5) was omitted by the Government of India (Adaptation of India Laws) Order, 1937.]

(6)

Whenever a vacancy occurs in a tribunal by reason of the removal, resignation or death of a member, [* * * *]

[The words [the Governor-General in Council where the vacancy occurs in the office of president and in any other case] inserted by section 3(d) of the Act

24 of 1925

were omitted by the Government of India (Adaptation of Indian Laws) Order, 1937.]

the [State] Government shall by notification appoint a person qualified within the meaning of sub-section (3) to fill the vacancy.

(7)

A change in the membership of a tribunal under the provisions of [* * *]

[The words bracket and figure "sub-section (5) or" omitted by East Punjab Act 44 of 1948, section 2.]

sub-section (6) shall not invalidate any previous or subsequent proceedings in any matter pending before it, nor shall it be necessary for a tribunal on account of such change to recommence any enquiry into any matter pending before it for disposal.

(8)

The [State] Government may from time to time appoint such officers and servants as it may deem to be necessary for the due performance of its duties by a tribunal; and the officers and servants so appointed shall, while they continue as such, be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.

(9)

A tribunal for the purpose of deciding any matter that it is empowered to decide under the provisions of this Act, shall have the same powers as are vested in a court by the Code of Civil Procedure, 1908 (5 of 1908), and shall have jurisdiction unlimited as regards value, throughout [Punjab]

[Substituted by Adaptation of Laws Order, 1950, for [East Punjab] - which had been substituted for [the Punjab] by G.G.O. 40 of 1948.]

, and shall have no jurisdiction over any proceedings other than is expressly vested in it by this Act.

(10)

Save as otherwise provided in this Act a decree or order of a tribunal shall be executed or otherwise given effect to by the district court of the district in which the gurdwara in connection with which the decree or order was passed is situated, or by the district court to which the tribunal directs that any decree or order shall be sent for this purpose as if the decree or order had been a decree or order passed by such court.

(11)

The proceedings of a tribunal shall so far as may be, and subject to the provisions of this Act, be conducted in accordance with the provisions of the Code of Civil Procedure, 1908 (5 of 1908).

(12)

If more tribunals than one are constituted, the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government may by notification direct which tribunal may entertain petitions relating to a particular gurdwara or gurdwaras situated in any specified area, and may at any time transfer any proceedings from one tribunal to another as it may deem proper.

13.

Procedure on difference of opinion.

(1)

No proceeding shall be taken by a tribunal unless at least two members are present, provided that notices and summonses may be issued by the president or a member nominated by the president for this purpose.

(2)

In case of a difference of opinion between the members of a tribunal, the opinion of the majority shall prevail; provided that if only two members are present of whom one is the president, and if they are not in agreement, the opinion of the president shall prevail; and if the president be not present, and the two remaining members are not agreed, the question in dispute shall be kept pending until the next meeting of the tribunal at which the president is present; the opinion of the majority, or of the president when only two members are present, shall be deemed to be the opinion of the tribunal.

14.

Tribunal to dispose of petition under sections 5, 6, 8, 10 and 11.

(1)

The [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government shall forward to a tribunal all petitions received by it under the provisions of sections 5, 6, 8, 10 and 11, and the tribunal shall dispose of such petitions by order in accordance with the provisions of this Act.

(2)

The forwarding of the petitions shall be conclusive proof that the petitions were received by the [State] Government within the time prescribed in sections 5, 6, 8, 10 and 11 as the case may be, and in the case of a petition forwarded by worshippers of a gurdwara under the provisions of section 8, shall be conclusive proof that the provisions of section 8 with respect to such worshippers were duly complied with.

15.

Power of tribunal to join parties and award costs.

(1)

In disposing of any matter in which it has jurisdiction a tribunal may order any dispute arising therefrom to be dealt with in one proceeding separately or more such disputes than one to be dealt with in one proceeding, and may, by public advertisement or otherwise, enquire if any person desires to be made a party to any proceeding, and may join in any proceeding any person who it considers ought to be made a party thereto.

(2)

The tribunal may order any person to submit within a fixed time a statement in writing setting forth the nature of this claim or objection and the grounds thereof.

(3)

If any person fails to comply with an order passed under the provisions of sub-section (2) and duly notified to him, the tribunal may decide the matter in dispute against him, provided that the tribunal may at any time extend the time fixed by its order for the submission of the statement if the person satisfies it that he had sufficient cause for not submitting the statement within the time fixed.

(4)

A tribunal may pass any such order as to costs of a proceeding as a court might pass under the provisions of the Code of Civil Procedure, 1908.

16.

Issue as to whether a gurdwara is a Sikh Gurdwara to be decided first and how issue is to be decided.

(1)

Notwithstanding any thing contained in any other law in force, if in any proceeding before a tribunal it is disputed that a gurdwara should or should to be declared to be Sikh Gurdwara, the tribunal shall, before enquiry into any other matter in dispute relating to the said gurdwara, decide whether it should or should not be declared a Sikh Gurdwara in accordance with the provisions of sub-section (2)

(2)

If the tribunal finds that the gurdwara -

(i)

was established by, or in memory of any of the Ten Sikh Gurus, or in commemoration of any incident in the life of any of the Ten Sikh Gurus and [was]

[Substituted for the word [is] by Punjab Act

3 of 1930

, section 3(i).]

used for public worship by Sikhs [before and at the time of the presentation of the petition under sub-section (1) of Section 7]

[Inserted by Punjab Act

3 of 1930

, Section 3(ii). The amendment shall be applicable to all claims, petitions and suits in which the recording of evidence has not been concluded before the tribunal at the commencement of this Act, vide Punjab Act

3 of 1930

, section 11(i).]

; or

(ii)

owing to some tradition connected with one of the Ten Sikh Gurus, [was] used for public worship predominantly by Sikhs, [before and at the time of the presentation of the petition under sub-section (1) of Section 7]

[Inserted by Punjab Act

3 of 1930

, Section 3(ii). The amendment shall be applicable to all claims, petitions and suits in which the recording of evidence has not been concluded before the tribunal at the commencement of this Act, vide Punjab Act

3 of 1930

, section 11(i).]

;

(iii)

was established for use by Sikhs for the purpose of public worship and [was] used for such worship by Sikhs, [before and at the time of the presentation of the petition under sub-section (1) of Section 7]

[Inserted by Punjab Act

3 of 1930

, Section 3(ii). The amendment shall be applicable to all claims, petitions and suits in which the recording of evidence has not been concluded before the tribunal at the commencement of this Act, vide Punjab Act

3 of 1930

, section 11(i).]

; or

(iv)

was established in memory of a Sikh martyr, saint or historical person and [was]

[Substituted for the word [is] by Punjab Act

3 of 1930

, section 3(i).]

used for such worship by Sikhs, [before and at the time of the presentation of the petition under sub-section (1) of Section 7]; or

(v)

owing to some incident connected with the Sikh religion [was]

[Substituted for the word " is" by Punjab Act

3 of 1930

, section 3(i).]

used for such worship by Sikhs, [before and at the time of the presentation of the petition under sub-section (1) of Section 7];

the tribunal shall decide that it should be declared to be a Sikh Gurdwara, and record an order accordingly.

(3)

Where the tribunal finds that a gurdwara should not be declared to be a Sikh Gurdwara, it shall record its finding in an order, and, subject to the finding of the High Court on appeal, it shall cease to have jurisdiction in all matters concerning such gurdwara, provided that, if a claim has been made in accordance with the provisions of section 8 praying for the restoration to office of a hereditary office-holder or person who would have succeeded such office-holder under the system of management prevailing before the first day of January, 1920 [or, in the case of the extended territories, before the first day of November, 1956]

[Inserted by Punjab Act No. 1 of 1959, Section 12.]

the tribunal shall, notwithstanding such finding continue to have jurisdiction in all matters relating to such claim; and if the tribunal finds it proved that such office-holder ceased to be an office-holder on or after the first day of January, 1920 [or, in the case of the extended territories, after the first day of November, 1956]

[Inserted by Punjab Act No. 1 of 1959, Section 12.]

, it may by order direct that such office-holder or person who would have so succeeded by restored to office.

17.

Notification of Sikh Gurdwara on finding of tribunal.

- When a tribunal has, under the provisions of sub-section (2) of Section 16 recorded a finding that a gurdwara should be declared to be a Sikh Gurdwara and no appeal has been instituted against such finding within the period prescribed by section 34; or when an appeal has been instituted and dismissed; or when in an appeal against a finding that a gurdwara should not be declared to be a Sikh Gurdwara the High Court finds that it should be so declared, the tribunal or the High Court, as the case may be, shall inform the [State] Government through the [appropriate Secretary to Government]

[Substituted for the words " Secretary to Government Transferred Departments," by the Government of India (Adaptation of Indian Laws) Order, 1937.]

, accordingly and the [State] Government shall, as soon as may be, publish a notification declaring such gurdwara to be a Sikh Gurdwara, and the provisions of Part III shall apply thereto with effect from the date of the publication of such

notification.

18.

Presumption in favour of a Notified Sikh Gurdwara on proof of certain facts when a claim to property is made by an office-holder. -

(1)

In any proceedings before a tribunal, if any past or present office-holder denies that a right, title, or interest recorded, in his name or in that of any person through whom claims, in a record of rights, or in an annual record, prepared in accordance with the provisions of the Punjab Land Revenue Act, 1887 (17 of 1987), and claimed to belong to a Notified Sikh Gurdwara, does so belong, and claims such right, title or interest to belong to himself shall, notwithstanding anything contained in section 44 of the said Act, be a presumption that such right, title or interest belongs to the gurdwara upon proof of any of the following facts, namely -

(a)

an entry of the right, title or interest made before the first day of January, 1920 [or, in the case of the extended territories, before the 1st day of November, 1956, as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, Section 13(a)]

in a record-of-rights, prepared at the time of a general assessment of the land revenue, in the name of the gurdwara or in the name of the holder of an office pertaining to the gurdwara as such, and not by name;

(b)

an assignment of the land revenue of, or of the proprietary right in, land at any time for the service or maintenance of the gurdwara notwithstanding that the assignment may be or may have been in the name of an office-holder, where the right claimed is an assignment of the land revenue of, or of the proprietary right in, the land, as the case may be;

(c)

the dismissal or removal of an office-holder before the first day of January, 1920 2[or, in the case of the extended territories, before the 1st day of November, 1956 as the case may be,] and the consequent transfer of the right, title or interest in question to his successor in office;

(d)

the expenditure of the whole or part of the income derived from the right, title or interest in question ordinarily on the service or maintenance of the gurdwara;

(e)

the acquisition of the right, title or interest in question from funds proved to have belonged to the gurdwara;

(f)

the submission by the office-holder or any of his predecessors-in-office of accounts relating to the income from the right, title or interest in question to the worshippers or to a managing body;

(g)

the devolution of the succession to the right, title or interest in question from an office-holder to the successor-in-office as such on two or more consecutive occasions;

(h)

any other fact which shows that the right, title or interest in question was at any time of the nature of a trust pertaining to the gurdwara or was purchased from funds of the nature of trust funds pertaining to the gurdwara.

(2)

The provisions of sub-section (1) shall also apply to a claim to a right, title or interest made by any person deriving title subsequent to the first day of January, 1920 [or, in the case of the extended territories, subsequent to the first day of November, 1956 as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, Section 13(b).]

from a past or present office-holder.

19.

Adjudication by tribunal upon agreements made between office-holder and persons acting on behalf of a Sikh Gurdwara.

- Where a change in the system of management of a Notified Sikh Gurdwara has occurred on or after the first day of January, 1920 [or, in the case of the extended territories, on or after the first day of November, 1956]

[Inserted by Punjab Act No. 1 of 1959, Section 14.]

, and as a consequence of, or in connection with, such change it is alleged that an agreement has been made between

any person who was an office-holder under the former system of management on the one side, and the Sikh worshippers of the gurdwara or a person or body acting on their behalf on the other side, any person who claims any right, title or interest by virtue of such agreement or any present office-holder of the gurdwara or any Sikh may, within ninety days from the date of the publication of the notification declaring such gurdwara to be a Sikh Gurdwara, present a petition to a tribunal praying that the agreement be considered, and the tribunal shall made an enquiry, and if it finds that a valid agreement was made, it shall, notwithstanding anything contained in the Indian Registration Act, 1908 (

16 of 1908

), or the Indian Stamp Act, 1899(2 of 1899), pass such orders as may be necessary to give effect to the agreement, and may by such orders create a charge on the property or income of the gurdwara.

20.

Claim for compensation by a hereditary office-holder who has resigned or been dismissed.

- Any hereditary office-holder of a Notified Sikh Gurdwara who, within twelve months after the date of the publication of a notification declaring the gurdwara to be a Sikh Gurdwara, has resigned office, or been removed from office otherwise than in accordance with the provisions of section 134 or under the provisions of section 142 or a presumptive successor of such office-holder, may within ninety days from the date of the resignation or removal, as the case may be, of such office-holder present a petition to a tribunal claiming to be awarded compensation on the ground that he has suffered or will suffer pecuniary loss owing to a change in the management of the gurdwara, and the tribunal may; notwithstanding the fact that such office-holder has voluntarily resigned; order compensation to be paid in accordance with the provisions of this Act, as if such office-holder had been unlawfully removed from his office.

21.

Claim for compensation by person alleging right to nominate office-holder of a Notified Sikh Gurdwara.

- When a notification has been published under the provisions of this Act declaring a gurdwara to be Sikh Gurdwara, any person claiming that the right to nominate an office-holder thereof was vested in him at the date of the publication, or before the first day of January, 1920 [or, in the case of the extended territories, before the first day of November, 1956]

[Inserted by Punjab Act 1 of 1959, Section 15.]

, may, within ninety days from the date of the publication, present a petition to a tribunal claiming to be awarded compensation on the ground that he has suffered pecuniary loss owing to a change effected after the first day of January, 1920 [or, in the case of the extended territories, before the first day of November, 1956]

[Inserted by Punjab Act 1 of 1959, Section 15.]

, in the system of management of such gurdwara, or that he will suffer pecuniary loss in consequence of the gurdwara being declared to be a Sikh Gurdwara; and the tribunal may order compensation to be paid to him in the same manner as to an office-holder under the provisions of this Act.

22.

Matters for consideration in awarding compensation.

- In deciding claims for compensation made under the provisions of section 6, 11 or 20, a tribunal -

(1)

may among other matters take into consideration -

(i)

the past conduct of the claimant;

(ii)

the improvements to the property of the gurdwara effected by the claimant;

(iii)

the portion of the trust income which, by long practice and the express or implied consent of the worshippers, the holder of the office and his predecessors have been allowed to appropriate to their private use, provided that this matter, if taken into consideration, shall only be so taken in determining the compensation due to an office-holder for his lifetime and shall not give to a presumptive successor of such office-holder any right to increased compensation, and provided also that the tribunal shall not be bound to fix the compensation on the basis of such income, but may, at its discretion, regard such income, as a ground for awarding compensation on a higher scale than it would otherwise have awarded;

shall take into consideration -

(i)

the past conduct of the claimant where such conduct has been or is in issue in a suit or other proceeding in a civil or

revenue court instituted before the 1st December, 1924 [or, in the case of the extended territories, before the commencement of the Amending Act as the case may be]

[Added by Punjab Act No. 1 of 1959, Section 16.]

,

(ii)

the conviction of the claimant by a criminal court for an offence which, in the opinion of the tribunal, involves moral turpitude or an order passed against him under the provisions of sections 110 and 118 of the Code of Criminal Procedure, 1898 (5 of 1898);

(iii)

the loss of income, not being of the nature of trust income, incurred by reason of an office-holder ceasing to hold office;

(iv)

all rights or privileges relating to residence, subsistence, service and other recognised allowances in cash or kind formerly enjoyed by the claimant.

23.

Compensation to be paid annually out of income of gurdwara.

- In awarding compensation, a tribunal shall unless the parties agree to its being paid otherwise, order it to be paid out of the income accruing to the gurdwara in which the office-holder held office in the form of an allowance, payable annually on a specified date for any period, but terminable in any case on the death of the person compensated.

24.

Payment to heir of person compensated.

- If any person to whom compensation has been ordered to be paid by a tribunal dies, his heir shall be entitled only to such sum as has become payable under the order but has not been paid : provided that if compensation was ordered to be made by payment of an annual allowance for a period which has not expired before the death of the person compensated, such heir shall in addition be entitled to a sum which bears the proportion to the amount of such allowance as the period between the date on which the allowance was last payable before the death of the deceased and the date of his death bears to one year.

25.

Manner in which compensation is to be paid and recovered if not duly paid. -

Every sum ordered by a tribunal to be paid out of the income of a gurdwara by way of compensation shall be deposited in the treasury of the tahsil in which the gurdwara is situated, and shall be paid to the person or persons entitled to it under such order or under the provisions of section 24 in such manner as may be prescribed and if it is not so deposited shall be recoverable out of the [income of such gurdwara or by way of temporary alienation of the agricultural land of such gurdwara for a period which the Collector may determine.]

[Substituted for the words 'property or income of such gurdwara by the Collector as if it were an arrears of land revenue,' by Punjab Act 11 of 1944, section 3.]

[25-A. Power of tribunal to pass decrees for possession in favour of the committees of Gurdwaras. - (1) When it has been decided under the provisions of this Act that a right, title or interest in immovable property belongs to a Notified Sikh Gurdwara, or any person, the Committee of the Gurdwara concerned or the person in whose favour a declaration has been made may, within a period of one year from the date of the decision or the date of the constitution of the Committee, whichever is later, institute a suit before a tribunal claiming to be awarded possession of the right, title or interest in the immovable property in question as against the parties to the previous petition and the tribunal shall, if satisfied that the claim relates to the right, title or interest in the immovable property which has been held to belong to the Gurdwara, or to the person in whose favour the declaration has been made, pass a decree for possession accordingly;]

[Added by Punjab Act

3 of 1930

, section 4. The Amendment shall be applicable to all claims, petitions and suits in which the recording of evidence has not been concluded before the tribunal at the commencement of this Act, vide section 11 of Punjab Act

3 of 1930

.]

(2)

[* * * * *]

[Omitted by Punjab Act 53 of 1953, Section 3.]

26.

Entry of rights of gurdwara in revenue records.

- When it has been decided, under the provisions of this Act, that a right, title or interest in immovable property belongs to a Notified Sikh Gurdwara or when a right, title or interest in such property has been included in a list published under the provisions of sub-section (3) of Section 5 or sub-section (3) of Section 10, the Collector of the district in which the property is situated shall, on application being made to him in this behalf and after making such enquiry as he may deem proper as to the fact of such decision or inclusion, cause an entry to be made in the record-of-rights, if any, of the estate in which the property is situated recording the gurdwara as the owner of the right, title or interest in accordance with the provisions of the Punjab Land Revenue Act, 1887.

27.

Treatment of property dedicated to a Notified Sikh Gurdwara but under management of trustees

. - (1) When on or before the commencement of this Act any property has been dedicated or gifted to a Notified Sikh Gurdwara and a trust has been created in writing for the management of such property and for the distribution of the income accruing therefrom partly to the gurdwara and partly to another institution or to another person or to both, any trustee appointed for the purpose of such trust, or any person having interest in such gurdwara or any person having interest in such institution, or any beneficiary under the terms of such trust may within ninety days from the date of the publication of a notification declaring such gurdwara to be a Sikh Gurdwara, present a petition to a tribunal claiming that the trustees appointed under the terms of the trust should continue to manage the property and to distribute the income accruing therefrom according and to the terms of the trust, and in addition may claim that the tribunal should determine what portion of the income should be allocated to any beneficiary.

(2)

If the tribunal finds that the major portion of the income accruing from the property has not been allocated under the terms of the trust to such gurdwara then, notwithstanding anything contained in this Act, the tribunal shall order that such trustees shall continue to manage the property and distribute the income accruing therefrom according to the terms of the trust, and if the tribunal finds that the major portion of the income has been allocated under the terms of the trust to the gurdwara, the tribunal shall order that the committee of such gurdwara shall manage the property and distribute the income accruing therefrom according to the terms of the trust.

(3)

If it is not clear from the terms of the trust what portion of the income has been allocated to any beneficiary, the tribunal may on the application of any party determine what portion of the income shall be allocated to any beneficiary.

(4)

If no such petition is presented within the time prescribed in sub-section (1) the committee of such gurdwara shall manage such property and distribute the income accruing therefrom according to the terms of the trust.

28.

Suits for possession of undisputed property of Notified Sikh Gurdwaras.

(1)

When a notification has been published under the provisions of sub-section (3) of Section 5 or of sub-section (3) of Section 10, the committee of the gurdwara concerned may bring a suit on behalf of the gurdwara for the possession of any property a proprietary title in which has been specified in such notification, provided that the gurdwara concerned is entitled to immediate possession of the property in question, and is not in possession thereof at the date of the publication of such notification.

(2)

The suit shall be instituted in the principal court of original jurisdiction in which the property in question is situated within a period of ninety days from the date of the publication of such notification, or from the date of the constitution of the committee, whichever is later, and if a suit is not instituted within that period no subsequent suit on behalf of the gurdwara for the possession of the property shall be instituted in any court except on the ground of the dispossession of the gurdwara after the date of the publication of such notification.

(3)

[*****]

[Omitted by Punjab Act 53 of 1953, section 4.]

.

29.

Exclusion of jurisdiction of the courts.

- Notwithstanding anything contained in any other law or enactment for the time being in force no suit shall be instituted and no court shall entertain or continue any suit or proceedings in so far as such suit or proceeding involves -

(1)

any claim to, or prayer for the restoration of any person to an office in a Notified Sikh Gurdwara or any prayer for the restoration or establishment of any system of management of a Notified Sikh Gurdwara other than a system of management established under the provisions of Part III;

(2)

any claim to, or prayer for the restoration of any person to an office in or any prayer for the restoration or establishment of any system of management of, any gurdwara in respect of which a notification has been published in accordance with the provisions of sub-section (3) of Section 7 unless and until it has been decided under the provisions of section 16 that such gurdwara should not be declared to be a Sikh Gurdwara.

30.

Decision by courts on certain claims in certain circumstances.

- At any time after the commencement of this Act [or, in the case of the extended territories, after the commencement of the Amending Act, as the case may be,]

[Inserted by Punjab Act No. 1 of 1959, Section 17.]

in any suit or proceeding instituted in any civil or revenue court -

(i)

if any claim is made that any right, title or interest in any property belongs to a Notified Sikh Gurdwara and the court finds that such claim might have been made in a list forwarded to the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government under the provisions of sub-section (1) of Section 3 or of sub-section (2) of Section 7 and that no such claim was duly made within time, the court shall decide such claim against the gurdwara on behalf of which the claim is made :

Provided that the court need not so decide, if it is satisfied that the failure to make the claim was owing to the fact that no person who forwarded or joined in forwarding a list had knowledge of the existence of the right, title or interest that might have been so claimed and that no such person should, by the exercise of reasonable diligence, have come to know of the existence of such right, title or interest;

(ii)

if any right is claimed for any person in connection with a Notified Sikh Gurdwara and the court finds that the right might have been made the subject of a claim in a petition forwarded to the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government under the provisions of sections 5, 6, 10 or 11 or presented to a tribunal under the provisions of sections 19, 20, 21 or 27 and that no such claim was duly made within time, the court shall decide the claim against the person claiming the right :

Provided that in the case of a claim that might have been made under the provisions of section 5 or section 10 the court need not so decide if it is satisfied that the failure to make the claim was owing to the fact that the person who might have made the claim either had no knowledge of the existence of the right, title or interest that he might have so claimed or had no knowledge of the fact that the right, title or interest had been included in a list published under the provisions of sub-section (2) of section 3 or of sub-section (3) of section 7 and could not, by the exercise of reasonable diligence, have come to know of the existence of such right, title or interest, or of the fact that such right, title or interest, was so included :

Provided further that in the case of a claim by a past or present office-holder or any person deriving title subsequent to the first day of January, 1920 from such office-holder minority or insanity shall not, by itself, be deemed a valid reason for not having such knowledge.

31.

Courts not to continue certain proceedings pending decision as to whether a place is or is not a Sikh Gurdwara.

(1)

No court should continue any proceedings in so far as such proceedings involve any claim relating to a gurdwara specified in schedule I or in regard to which a notification has been published under the provisions of sub-section (2) of Section 3, if such claim could have been made in a petition forwarded to the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government under the provisions of section 5 or 6, or presented to a tribunal under the provisions of section 19, 20, 21 or 27, and was not so made, unless and until such gurdwara is deemed to be excluded from specification in Schedule I under the provision of section 4.

(2)

No court shall continue any proceedings in so far as such proceedings involve any claim relating to a gurdwara in regard to which a notification has been published under the provisions of sub-section (3) of Section 7, which could have been made in a petition forwarded to the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government under the provisions of section 10 or 11 or presented to a tribunal under the provisions of section 19, 20, 21 or 27, and was not so made, unless and until it has been decided under the provisions of section 16 that such gurdwara should not be declared to be a Sikh Gurdwara.

32.

Transfer of suits pending in court. -

(1)

Where in any suit or proceeding pending at the commencement of this Act or instituted after its commencement, in a civil or revenue court, it has become or becomes necessary to decide any claim in connection with a Notified Sikh Gurdwara which the court finds might be made under the provisions of section 3, 5, 6, 7, 10, 11, 19, 20, 21 or 27 within the time prescribed therein, the court shall frame an issue in respect of such claim and shall forward the record of the suit or proceeding to a tribunal.

(2)

On receiving a record forwarded to it under the provisions of sub-section (1) the tribunal shall proceed to hear and determine the issue and record its decision in the form of an order and shall return the record with a copy of its decision to the court and the court shall proceed to determine the suit or proceeding in accordance with such decision subject to the provisions of section 34.

33.

Disputes relating to rights of office-holder after a year from commencement of Act.

- When any place has been declared by notification under the provisions of this Act to be a Sikh Gurdwara, the right of any office-holder thereof who holds office on the date of the publication of such notification to continue to hold his office shall be decided in accordance with the provisions of Part III.

34.

Appeal against orders of a tribunal.

(1)

Any party aggrieved by a final order passed by tribunal determining any matter decided by it under the provisions of this Act may, within ninety days of the date of such order, appeal to the High Court.

(2)

No appeal or application for revision shall lie against an order of a tribunal except as provided for in sub-section (1).

(3)

An appeal preferred under the provisions of this section shall be heard by a Division Bench of the High Court.

35.

Court fees.

- Notwithstanding anything contained in any Act to the contrary, the court-fee, payable on documents of the description specified in the second column of schedule III shall be the fee specified in each case in the third column of that schedule and shall be paid in such manner as may be prescribed.

36.

No court to take cognizance of manner in which the State Government or tribunal exercises its power under the Act.

- No suit shall lie in any Court to question anything purporting to be done by the [State]
[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]
Government or, by a tribunal, in exercise of any powers vested in its by or under this Act.

37.

Courts not to pass an order or grant or execute a or decree inconsistent with decision of a tribunal.

- Except as provided in this Act no court shall pass any order or grant any decree or execute wholly or partly, any order or decree, if the effect of such order, decree or execution would be inconsistent with any decision of a tribunal, or any order passed on appeal therefrom, under the provisions of this Part.

Part II ? Chapter IV

Application Of Provisions Of Part Iii To Gurdwaras Found To Be Sikh Gurdwaras By Courts Other Than A Tribunal Under The Provisions Of The Act

38.

Recourse to ordinary courts in cases where action has not been taken under Part I with a view to application of provisions of Part III to gurdwara.

(1)

Notwithstanding anything contained in this Act or any other Act or enactment in force, any two or more persons having interest in any gurdwara in respect of which no notification declaring the gurdwara to be a Sikh Gurdwara has been published under the provisions of this Act may, after the expiry of one year from the commencement of this Act, [or, in the case of the extended territories, from the commencement of the Amending Act, as the case may be]

[Inserted by Punjab Act 1 of 1959, Section 18.]

or of such further period as the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government may have fixed under the provisions of sub-section (1) of Section 7, and after having obtained the consent of the Deputy Commissioner of the district in which such gurdwara is situated institute a suit, whether contentious or not, in the principal court of original jurisdiction or in any other court empowered in that behalf by the [State] Government within the local limits of whose jurisdiction the gurdwara is situated praying for any of the reliefs specified in section 92 of the Code of Civil Procedure, 1908(5 of 1908), and may in such suit pray that the provisions of Part III may be applied to such gurdwara.

(2)

The court in which a suit is instituted under the provisions of sub-section (1) shall decide whether the gurdwara is or is not a gurdwara as described in sub-section (2) of Section 16, and if the court decides that it is such a gurdwara and is also of opinion that, having regard to all the circumstances, the gurdwara is one to the management of which the provisions of Part III should be applied, the court shall by public advertisement and in such other manner as it may in each case direct, call upon any person having interest in the gurdwara to appear and show cause why the provisions of Part III should not be so applied, and shall in its order fix a date not less than one month from the date of the order on which any person appearing shall be heard.

(3)

Upon the date fixed under the provisions of sub-section (2) or on any subsequent date to which the hearing may be adjourned, the court shall proceed to hear the person or persons, if any, appearing and if the court is satisfied that the provisions of Part III can be applied to the management of the gurdwara without prejudice to any existing order or decree relating to the gurdwara and conferring on any person or declaring any person to be entitled to any right, in respect of the administration or management thereof, the court shall pass a decree that the said provisions shall apply to the management of the gurdwara.

(4)

Upon such decree being passed and subject to any order that may be passed on appeal against or in revision of the decree the provisions of Part III shall apply to such gurdwara as if it had been declared by notification under the provisions of this Act to be a Sikh Gurdwara.

(5)

When under the provisions of sub-section (3) the provisions of Part III have by decree been applied to the management of a gurdwara any hereditary office-holder of such gurdwara who within twelve months after the date of the decree has resigned office or been removed from office otherwise than in accordance with the provisions of section 134 or under

the provisions of section 142 or a presumptive successor of such office-holder, may within ninety days from the date of the resignation or removal, as the case may be of such office-holder, present a petition to the Court which passed the decree claiming to be awarded compensation on the ground that he has suffered or will suffer pecuniary loss owing to a change in the management of such gurdwara and the court may, notwithstanding the fact that such office-holder has voluntarily resigned, pass a decree awarding him compensation as if such office-holder had been unlawfully removed from his office.

(6)

The provisions of sections 22, 23, 24 and 25 shall so far as may be, apply to proceedings under the provisions of sub-section (5) and to proceedings arising therefrom, as if the court was a tribunal.

Part III ? Chapter V

Control Or Sikh Gurdwaras

39.

Suits for relief claimable by application under this Part barred.

- Notwithstanding anything contained in any Act to the contrary, no suit shall be instituted or continued in any court, claiming any relief in respect of the management or administration of a Notified Sikh Gurdwara if such relief might be or might have been claimed in an application made under the provisions of this Part.

40.

Board, committees and Commission to be constituted for the purposes of this Act.

- For the purposes of this Act there shall be constituted a Board and for every Notified Sikh Gurdwara a committee of management, [* * *]

[The words " or a local committee" inserted by Punjab Act 11 of 1944, Section 4 and omitted by Punjab Act 53 of 1953, Section 5.]

and there shall also be constituted from time to time a Judicial Commission in the manner hereinafter provided.

41.

Control of Sikh Gurdwaras.

- The management of every Notified Sikh Gurdwara shall be administered by the committee [* * *]

[The words [or a local committee] inserted by Punjab Act 11 of 1944, Section 5 and omitted by Punjab Act 53 of 1953, Section 6.]

constituted thereof, the Board and the [Commission]

[Substituted for the word " Commissioner" by ibid.]

in accordance with the provisions of this Part.

Chapter VI

The Board

42.

Name of Board.

(1)

The Board shall be known by such name as may be decided upon at a general meeting of the first Board constituted under the provisions of this Act provided that not less than three-fifths of the members, present at the meeting have voted in favour of the name selected, and that such name has been approved by the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government.

(2)

If the Board fails to select a name in accordance with the provisions of sub-section (1) or the name selected is not approved by the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government the Board shall be designated the Central Board.

(3)

The Board shall by such name be a body corporate and shall have a perpetual succession and a common seal and shall by such name sue and be sued.

43.

[Composition and constitution of the Board. - (1) The board shall consist of-

(i)

one hundred and thirty-two elected members,

(ii)

the head ministers of the Darbar Sahib, Amritsar, and the following four Takhats, namely, :-

the Sri Akal Takhat Sahib, Amritsar, the Sri Takhat Keshgarh Sahib, Anandpur, the Sri Takhat Patna Sahib, Patna, and the Sri Takhat Hazur Sahib, Hyderabad Deccan.

(iii)

twenty-five members resident in India of whom at least twelve shall be residents of PEPSU, at least nine of other parts of India than Punjab and PEPSU and not more than four of Punjab, co-opted by the members of the Board as described in clauses (i) and (ii).

(2)

The State Government shall, as soon as may be, call a meeting of the members of the Board described in clauses (i) and (ii) of sub-section (1) for the purpose of co-opting the members described in clause (iii) of that sub-section, and after the members have been co-opted, the State Government shall notify the fact of the Board having been duly constituted and the date of the publication of the notification, shall be deemed to be the date of the constitution of the Board.]

[Substituted by Punjab Act 44 of 1953, Section 2.]

[43-A. Constitution of new Board. - (1) Whenever a new Board within the meaning of section 51 is constituted, it shall consist of -

(i)

one hundred and forty elected members;

(ii)

the Head Ministers of the Darbar Sahib, Amritsar, and the following four Takhats, namely :-

the Sri Akal Takhat Sahib, Amritsar;

the Sri Takhat Keshgarh Sahib, Anandpur;

the Sri Takhat Patna Sahib, Patna,

the Sri Takhat Hazur Sahib, Nanded; and

(iii)

fifteen members resident in India, of whom not more than five shall be residents of Punjab, co-opted by the members of the Board as described in clauses (i) and (ii).

(2)

The [***]

[Inserted by Punjab Act 1 of 1959, Section 19.]

shall as soon as may be, call a meeting of the members of the Board described in clauses (i) and (ii) of sub-section (1) for the purpose of co-opting the members described in clause (iii) of that sub-section, and after the members have been co-opted, the State Government shall notify the fact of the Board having been duly constituted and the date of the publication of the notification shall be deemed to be the date of the constitution of the Board].

44.

[Constituencies for election of members of Board. - [(1)]

[Substituted for the old section by Punjab Act 11 of 1944, Section 7.]

The elected members of the Board shall be returned from such constituencies as may be [specified by the Central Government]

[Substituted for [prescribed] vide MOH Notification No. S.O. 978(E), dated 15.12.1995.]

after consultation with the Board, and except as provided in sub-section (2) each constituency shall return a single member].

(2)

[The [Central Government]

[Substituted by Punjab Act 44 of 1953, Section 3.]

shall from time to time, and after such consultation with the Board or as it considers proper, select [twenty constituencies]

[Substituted by Punjab Act 1 of 1959, Section 20(b).]

and the constituencies so selected shall be plural constituencies, each returning two members of whom one shall be a

Sikh belonging to any of the Scheduled Castes notified as such under Article 341 of the Constitution of India and the other shall be a Sikh who does not belong to any of those Scheduled Castes].

45.

Qualifications of elected members.

(1)

A person shall not be eligible for election as a member of the Board if such person -

(i)

is of unsound mind;

(ii)

is an undischarged insolvent;

(iii)

is a patit;

(iv)

is a minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or of one of the four Sikh Takhts specified in clause (ii) of sub-section (1) of Section 43;

(v)

is a paid servant of any Notified Sikh Gurdwara, or of the Board other than a member of the executive committee of the Board;

(vi)

[being a keshadhari Sikh is not an amritdhari;

[Added by Punjab Act 11 of 1944, Section 8.]

(vii)

takes alcoholic drinks];

(viii)

[not being a blind person cannot read and write Gurmukhi.

[Substituted by Punjab Act 1 of 1959, section 21(1).]

Explanation. - For purposes of clause (viii) a person shall be deemed to be able to:-

(a)

read Gurmukhi if he is able to recite Shri Guru Granth Sahib in Gurmukhi; and

(b)

write Gurmukhi if he fills his nomination paper for election to the Board in Gurmukhi in his own handwriting. If any question arises whether a candidate is or is not able to read and write Gurmukhi the question shall be decided in such manner as may be prescribed.]

(2)

No person shall be eligible for election as a member of the Board if he is not registered on the electoral roll of any constituency [* * *]

[The words [specified in Schedule IV] omitted by Punjab Act No. 1 of 1959, Section 21(2).]

.

(2A)

[No person shall be eligible for election to the Board if he is less than twenty-five years of age]

[Inserted by Punjab Act No. 1 of 1959, Section 21(3).]

.

(3)

Notwithstanding anything contained in sub-section (1) no person shall be prevented from standing as a candidate for election as a member of the Board on the ground that he is patit : but if a person elected is thereafter found under the provisions of section 84 to be a patit his election shall be void.

46.

Qualifications of nominated members.

- A person shall not be [* * *]

[The words 'nominated or'omitted by Punjab Act 44 of 1953, Section 4.]

co-opted to be a member of the Board if he -

- (i)
is less than [twenty-five]
[Substituted for the words 'twenty-one' by Punjab Act 1 of 1959, Section 22(a).]
years old;
- (ii)
is not a Sikh;
- (iii)
is of unsound mind;
- (iv)
is an undischarged insolvent;
- (v)
is a patit;
- (vi)
is minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or of any of the four Sikh Takhats specified in clause (ii) of sub-section (1) of Section 43;
- (vii)
is a paid servant of any Notified Sikh Gurdwara or of the Board, other than a member of the executive committee of the Board;
- (viii)
[being a keshadhari Sikh is not an amritdhari;
[Added by Punjab Act 11 of 1944, Section 9.]
- (ix)
takes alcoholic drinks]
- (x)
[not being a blind person cannot read and write Gurmukhi.
[Substituted by Punjab Act No. 1 of 1959, Section 22(b).]
Explanation. - for purposes of clause (x) a person shall be deemed to be able to -
- (a)
read Gurmukhi if he is able to recite Shri Guru Granth Sahib in Gurmukhi; and
- (b)
write Gurmukhi if he is able to communicate his consent to become a member in Gurmukhi, in his own handwriting. If any question arises whether a candidate is or is not able to read or write Gurmukhi the question shall be decided in such manner as may be prescribed.]
47.
Date of Board election.
- Elections of members of the Board under the provisions of this Act shall be held on dates to be fixed by the [Central Government]
[Substituted for [State Government] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]
- .
- [47-A. Superintendence, direction and control of election of Members [of the Board and of Committees]
[Substituted vide MOH Notification No. S.O. 978(E), dated 15.12.1995]
to be vested in the Gurdwara Election Commission. - (1) The Superintendence, direction and control of the preparation of the Electoral rolls for and the conduct of election of Members [of the Board and of Committees]
[Substituted for [of the Board] vide MOH Notification No. S.O.360(E), dated 30.4.1998.]
- (1A)
The Gurdwara Election Commission shall consist of the Chief Commissioner, Gurdwara Election who may perform such of his functions as he may consider necessary through the Commissioner, Gurdwara Elections concerned.
- (2)
The Government of the States of Punjab, Haryana, Himachal Pradesh or the Administrator of the Union Territory of Chandigarh shall when so required by the Gurdwara Election Commission make available to the Gurdwara Election Commission or to the Commissioner, Gurdwara Elections concerned, such staff and other facilities as may be

considered necessary for the performance of the functions conferred on the Gurdwara Election Commission by sub-section (1).

(3)

The staff made available under sub-section (2) and all other officers and staff engaged in the work of preparation of electoral rolls and the conduct of elections under this Act, shall be deemed to be in deputation to the Gurdwara Election Commission for the period commencing on and from the date which may be notified by the Gurdwara Election Commission and ending with the date of due constitution [of the Board and of Committees]

[Substituted for [of the Board] vide MOH Notification No. S.O.360(E), dated 30.4.1998.]

and accordingly such staff shall during that period be subject to the control, superintendence and discipline of the Gurdwara Election Commission.]

48.

Electoral roll -

An electoral roll shall be prepared in such manner as may be prescribed for every constituency, on which shall be entered the names of all persons entitled to be registered as voters in that constituency.

49.

[Qualifications of electors. -

Every person shall be entitled to have his name registered on the electoral roll of a constituency constituted for the election of a member or members of the Board who is a resident in that constituency and * * [* * *]

[Substituted for the old section by Punjab Act 11 of 1944, Section 10.]

.

(i)

[* * *]

[Clause (i) omitted by the Adaptation of Laws (Third Amendment) Order of 1950.]

;

(ii)

is a Sikh more than twenty-one years of age, who had his name registered as a voter in such manner as may be prescribed :]

[Provided that no person shall be registered as an elector who -

(a)

trims or shaves his beard or keshas;

(b)

smokes; and

(c)

takes alcoholic drinks.]

50.

Right to vote.

(1)

Every person registered on the electoral roll for the time being in force for any constituency for the election of a member or members of the Board shall be entitled while so registered to vote at an election of a member or members for that constituency, provided that no person shall be entitled to vote at an election in more than one constituency.

(2)

[In any plural constituency as provided by section 44, the right of voting shall be exercisable in the following manner, that is to say, a vote may be cast for each of the two candidates of whom one shall be a Sikh belonging to any of the Scheduled Castes referred to in sub-section (2) of section 44 and the other shall be a Sikh who does not belong to any of those Scheduled Castes.]

[Substituted by Punjab Act 44 of 1953, Section 5. The Old sub-section (2) was added by Punjab Act 11 of 1944, Section 11 and section 50, renumbered as sub-section (1) by *ibid.*]

51.

Term of membership.

- The members of the Board shall hold office for [five]

[Substituted for the word "three" by Punjab Act 11 of 1944, Section 12.]

years from the date of its constitution or until the constitution of a new Board, whichever is later.

52.

Effect of subsequent disability to serve as member of Board.

- [(1) If any person having been elected [***]

[Substituted for the old section 52 by Punjab Act

3 of 1930

, Section 5.]

[or co-opted]

[Inserted by Punjab Act 11 of 1944, Section 13(i).]

a member of the Board subsequently becomes [or is found to be by the Board]

[Inserted by East Punjab Act 32 of 1949, Section 2.]

subject to any of the disabilities stated in section 45 or section 46, as the case may be, he shall cease to be a member thereof.]

[Proviso substituted by Act No. 21 of 2016.]

(2)

[Any person aggrieved by the finding of the Board mentioned in sub-section (1) of this section may, within a month of the date of his knowledge of such finding, appeal to the Commission for setting aside the said finding and the order of the Commission passed in this respect shall be final :

Provided that the person against whom any such finding is given by the Board shall not cease to be a member of the Board until the order of the Commission in appeal, or, if no appeal is preferred, until the time allowed for preferring an appeal has passed.]

(3)

If any person having been elected [***]

[The old sub-section (2) renumbered as sub-section (3) by section 2(b) of Punjab Act 42 of 1953.]

[or co-opted]

[Inserted by Punjab Act 11 of 1944, Section 13(i).]

a member of the Board absents himself from three consecutive general meetings of the Board, his name may be removed from membership by the Board, provided that, if he applies to the Board within one month of the removal of his name to be restored to membership, the Board may, at the meeting next following the date of the receipt of such application, restore him to office, provided further that no member shall be restored more than three times.]

[Added by Punjab Act 42 of 1953, Section 2(a).]

53.

Vacancy in Board how to be filled.

- When a vacancy occurs in the Board owing to the death or resignation of a member or for any other reason, a new member shall be elected, [* * *]

[The words "nominated" and "or nominated" omitted by Punjab Act No. 44 of 1953, Section 7.]

or co-opted, as the case may be, in the manner in which the member whose seat is to be filled was elected or co-opted.]

[See Punjab Act 25 of 1953, which provides for the filling of vacancies in the Shromani Gurdwara Parbandhak Committee constituted in exercise of powers conferred by Article 9(2) of the India (Adaptation of Existing Indian Laws) Order, 1947.]

54.

First meeting of the Board. -

The first general meeting of the Board shall be held at a time not later than one month after the [State] Government has notified that it has been constituted, and notice thereof shall be given by notification by the [Central Government]

[Substituted for [State Government] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

.

55.

Annual general meeting.

- An annual general meeting of the Board shall be held in every year.

56.

Notice of meeting. -

Meetings of the Board other than the first meeting shall be called by twenty days' notice in writing served on every member of the Board in such manner as may be prescribed by bye-laws made by the Board.

57.

Power of member to call meeting.

- Any ten or more members may by application in writing made to the President demand that a general meeting of the Board be held, and if, notwithstanding such demand, notice of a meeting is not given within fifteen days of the date on which the application was received by the President, the applicants may themselves call a meeting to be held at the office of the Board by ten days' notice served in the manner described in section 56.

58.

Office of Board.

- The Board shall have an office in Amritsar for the transaction of business, to which, all communications and notices to the Board may be addressed.

59.

Quorum of Board in general meeting.

- The powers vested by this Act in the Board in general meeting shall not be exercised except by the Board at a meeting at which thirty-one or more members are present.

[60. Chairman at meetings of the Board. - The President shall be the Chairman at the meeting of the Board and of the Executive Committee, and if the President is absent, the Senior Vice-President shall be Chairman. If the President and the Senior Vice-President are both absent, the Junior Vice-President shall be Chairman, and if neither the President nor any Vice-President is present, the members present shall elect one of themselves to be Chairman for the purposes of the meeting]

[Substituted by Punjab Act 53 of 1953, Section 7.]

.

61.

Decision of questions before Board.

- Except as otherwise provided by this Act or prescribed all questions which come before the Board or its executive committee shall be decided by a majority of the votes of the members present; and in the case of an equality of votes the Chairman shall have a second or casting vote :

[Provided that no member of the Board referred to in clause (ii) of sub-section (1) of Section 43 or of section 43-A shall be entitled to vote on any matter falling under sections 62 and 63.]

[Added by Punjab Act No. 1 of 1959, Section 23.]

62.

Office-bearers and executive committee of Board.]

[Section 62 renumbered as sub-section (1) and sub-section (2) added by Punjab Act 53 of 1953, Section 8.]

- (1) The Board shall at its first general meeting elect by a ballot one of its members to be President [two others to be Vice-Presidents (one Senior and one Junior) and another to be General Secretary of the Board]

[Section 62 renumbered as sub-section (1) and sub-section (2) added by Punjab Act 53 of 1953, Section 8.]

to be known as office-bearers of the Board, and shall also at the same meeting in like manner elect not less than five and not more than eleven of its members, as the Board may deem fit, to be members of the executive committee of the Board, and the office-bearers and members so elected shall be the executive committee of the Board.]

(2)

□

[Section 62 renumbered as sub-section (1) and sub-section (2) added by Punjab Act 53 of 1953, Section 8.]

If the President is not elected in the first general meeting, the [Central Government]

[Substituted for [State Government] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

shall call another general meeting for the election of the Office-bearers and members of the Executive Committee not later than one month after the date of the previous meeting, by a notice published in the official Gazette in this behalf. If, however, the President has been elected but one or more of the other office-bearers or other members of the Executive Committee have not been elected in the first general meeting, the President shall call another meeting for the election of the remaining office-bearers and members of the Executive Committee, not later than one month from the date of the previous meeting, in accordance with section 56).

63.

Annual election of executive committee.

(1)

Subsequent to the constitution of an executive committee under the provisions of section 62 an Executive Committee similar to the one described in that section shall be elected by ballot at each annual general meeting of the Board [if the Board so desires]

[Inserted by Punjab Act 11 of 1944, Section 15(a).]

; the [office-bearers]

[Substituted for the words "office-holders" by Punjab Act 11 of 1944, Section 15(b).]

and other members of the executive committee elected at the first meeting of the Board shall hold office until a new executive committee has been elected at the first annual general meeting of the Board, and the members elected at an annual general meeting shall hold office until a new executive committee has been duly elected at the next following annual general meeting :

[Provided that, if at any time after the constitution of any executive committee under Section 62 or this section and before the expiry of its term mentioned above, the Board in a general meeting expresses no-confidence in it, the office-bearers and the other members of the said executive committee shall at once cease to hold office and new office-bearers and executive committee shall be elected in the said meeting of the Board for the remaining term of the outgoing executive committee :

[Provisos added by Punjab Act 26 of 1953, Section 2(a).]

Provided further, that the no-confidence motion shall not be discussed in the general meeting of the Board before the expiry of three months after the constitution of any executive Committee].

(2)

Nothing contained in sub-section (1) shall prevent the re-election of any outgoing member of an executive committee.

(3)

[If the office-holders and the other members of the executive committee cease to hold office under provisos to sub-section (1) of this Section, the Chairman of the meeting for the conduct of the election of the new President shall be elected out of the members present in the said meeting and the new President so elected shall act as the Chairman for the further proceedings of the meeting.

(4)

Procedure regarding notice of no-confidence motion specified in sub-section (1) will be in the manner prescribed by the Rules made by the Government]

[New sub-sections (3) and (4) added by Punjab Act 26 of 1953, Section 2(b).]

.

64.

Powers of executive committee of Board.

- The executive committee of the Board shall exercise on behalf of the Board all powers conferred on the Board by the provisions of this Act which are not expressly reserved to be exercised by the Board in general meeting. [But the Executive Committee may, if it so decides by a majority of three-fourth of its members present in the meeting, delegate any of its powers to a Sub-Committee consisting of one or more of its members]

[Added by Punjab Act No. 1 of 1959, Section 24.]

.

65.

Vacancy in executive committee how to be filled.

- If a vacancy occurs in the executive committee, the remaining members of the executive committee may, if the vacancy is that of an office-bearer, appoint one of themselves, or if the vacancy is that of any member other than an office-bearer, nominate any member of the Board temporarily to fill the vacancy until the next following general meeting of the Board and the Board shall at such meeting elect a member of the Board to fill the vacancy.

66.

Member of a committee of management not to be member of executive committee of Board.

- A member of a committee of management shall not be eligible for election as a member of the executive committee, and if any member of the executive committee at any time becomes a member of a committee of management he shall

forthwith cease to be a member of the executive committee.

67.

Registration of member of executive committee or of Board.

- A member of the executive committee [or, of the Board]

[Inserted by Punjab Act 11 of 1944, Section 16.]

may resign the office by giving notice to the President, and an office-bearer may resign his office by giving notice to the executive committee and such resignation shall have effect from the date on which the resignation was accepted by the President or executive committee, as the case may be.

68.

Remuneration of members of executive committee.

- Any member of the executive committee may receive out of the fund of the Board such salary or other remuneration as may from time to time be fixed by the Board in general meeting.

69.

Servants of the Board; their appointment and punishment.

- The executive committee of the Board may appoint such servants as it may deem to be necessary for the due performance by itself of its duties, and may from time to time determine the number, designations, grades and scales of salary, or other remuneration of such servants, and may at any time fine, reduce, suspend, or remove any servant.

Chapter VII

The Judicial Commission

70.

The Judicial Commission.

(1)

The Judicial Commission shall consist of three members who shall be Sikhs appointed from time to time as may be necessary by the [Government of the State of Punjab]

[Substituted for the word [State Government] by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

.

(2)

No person shall be appointed to be a member of the Commission unless he-

(i)

is, or, at the time of his retirement or resignation from [the service of the [(Government)]

[Substituted for the words 'Government Service' by the Government of India (Adaptation of Indian Laws) Order, 1937.]

, was a District Judge or a Subordinate Judge of the first class or of not less than ten years' standing, or [a Munsif of the 1st class or of not less than ten years' standing; or]

[Added by Punjab Act

3 of 1930

, Section 6.]

(ii)

is a Barrister of not less than ten years' standing; or

(iii)

is a person who has been a pleader of any High Court [or any Court which is a High Court within the meaning of clause (24) of section 3 of the General Clauses Act, 1897]

[Inserted by Punjab Act 13 of 1926, section 2. This amendment has been given retrospective effect by Punjab Act 13 of 1926, Section 3, which reads as follows :- [3. The amendments made in the said Act by section 2 shall have effect as if they had been made on the 1st day of November, 1925].]

for an aggregate period of not less than ten years.]

(3)

Two of the members of the Commission shall be selected by the [State] Government out of a list of qualified persons prepared and maintained as described in section 71.

71.

Appointment of members of the Commission.

(1)

For the purpose of the appointment of members of the Commission the Board, shall, as soon as may be, after its constitution submit a list of the names of seven persons nominated by the Board, and the [State] Government shall after being satisfied that the persons are qualified as required by section 70 record the list; provided that if the Board fails to submit a list within ninety days from the constitution of the Board the [Government of the State of Punjab]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950, Substituted for the word "State Government" by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

may itself complete a list of qualified persons.

(2)

A person whose name is on the list described in sub-section (1) shall be entitled to have his name retained thereon for two years after his nomination has been recorded, provided that the [State] Government may at any time remove his name, if it is satisfied upon a report made by the Board and any enquiries it may see fit to make, that he is incapable of acting as a member of the Commission.

(3)

If any person whose name is on the list dies, or applies to the Board to have his name removed therefrom, the Board shall inform the [State] Government and his name shall be removed from the list.

(4)

The [State] Government shall on request being made to it for this purpose by the Board remove from the list the name of any person whose name has been on the list for more than three years, provided that the name of any person shall not be so removed while such person is a member of the Commission.

(5)

When a name has been removed from the list the Board shall nominate a qualified person for the purpose of filling the vacancy, and the [State] Government shall after being satisfied that such person is qualified, place his name upon the list.

(6)

If the Board fails to nominate a person to fill a vacancy as required by sub-section (5) the [State] Government may after giving one month's notice of its intention to the Board place the name of any qualified person on the list to fill the vacancy.

72.

Member of the Board or of a committee to resign if appointed a member of Commission. -

If any person who is a member of the Board or of a committee or of both is appointed to be a member of the Commission and accepts the appointment he shall forthwith cease to be a member of the Board or committee, or of both, as the case may be.

73.

Remuneration of the members of the Commission.

- The members of the Commission, while they continue as such, shall receive such remuneration [or daily allowance and travelling expenses]

[Inserted by Punjab Act 11 of 1944, Section 17(i).]

as may be fixed from time to time by the [State] Government [with consultation of the Board] and shall be deemed to be public servants within the meaning of section 21 of the Indian Penal Code.

74.

Officers and servants of the Commission.

- The [Government of the State of Punjab]

[Substituted for the word "State Government" by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

may from time to time appoint such officers and servants as it may deem to be necessary for the due performance of its duties by the Commission, and the officers and servants so appointed shall, while they continue as such, be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code.

75.

Expenses to be shared by Government and Board.

- [The net]

[Substituted for the word [All] by Punjab Act 1 of 1941, Section 2.]

expenses arising [on and from the 1st day of November, 1966]

[Inserted by Government of India Notification No. S.O. 465, dated the 3rd February, 1969.]

from the appointment of the Commission including the remuneration of its members, officers, and servants shall be defrayed by the [Government of Punjab]

[Substituted for the words 'State Government' by Government of India Notification No. S.O. 465, dated the 3rd February, 1969.]

and the Board the [Government of Punjab]

[Substituted for the words "State Government" by Government of India Notification No. S.O. 465, dated the 3rd February, 1969.]

paying one-third of the whole, provided that the enumeration of the members, officers and servants shall be paid wholly in the first instance by the [Government of Punjab] and the portion thereof payable by the Board shall be recovered from the Board after the close of each financial year.

(1A)

[The one-third share of the expenses referred to in sub-section (1) met by the Government of Punjab from time to time after the 1st day of November, 1966, shall be allocated between the State of Punjab, Haryana and the Union territories of Himachal Pradesh and Chandigarh in the ratio of 131 : 8 : 1 : 1 and the Government of Haryana and the Administrators of Himachal Pradesh and Chandigarh shall at the end of each financial year pay to the Government of Punjab the amount to allocated respectively to the State of Haryana, the Union territory of Himachal Pradesh and the Union territory of Chandigarh]

[Sub-section (1A) inserted by Government of India Notification No. S.O. 465, dated the 3rd February, 1969.]

.

(2)

Any sum due to the [Government of Punjab]

[Substituted for the words " State Government" by Government of India Notification No. S.O. 465, dated the 3rd February, 1969.]

under the provisions of sub-section (1), shall, if not recovered within three months after a demand has been made, be recoverable as if it were an arrear of land revenue.

76.

Jurisdiction and procedure of Commission.

(1)

The Commission shall for the purpose of deciding any matter which it is empowered to decide under the provisions of this Act have the same powers as are vested in a court by the Code of Civil Procedure, 1908 (5 of 1908) and shall have jurisdiction unlimited as regards value throughout Punjab, and shall have no jurisdiction over any proceedings other than is expressly vested in it by the Act.

(2)

A decree or order of the Commission shall be executed or otherwise given effect to by the District Court of the district in which the gurdwara in connection with which the decree or order was passed is situated, or by the District Court to which the Commission directs that any decree or order shall be sent for this purpose, as if the decree or order had been a decree or order passed by such court.

(3)

The proceedings of the Commission shall, so far as may be and subject to the provisions of this Act, be conducted in accordance with the provisions of the Code of Civil Procedure, 1908 (5 of 1908), and, save as otherwise provided by this Act, all orders of the Commission shall be final.]

[Substituted for [East Punjab] by Adaptation of Laws Order, 1950.]

77.

Court and office of Commission. -

The Commission shall have its court and office at such place or places as the [State]Government may from time to time fix.

78.

Vacancy in Commission.

- If a vacancy occurs in the Commission it shall be filled by the appointment by the [Government of the State of Punjab]

[Substituted for the word "State Government" by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

.[of]

[Substituted for the word [or] by Punjab Act 53 of 1953, Section 9.]

some other qualified person in the same manner as that in which the person whose seat is to be filled was appointed.

79.

Removal of member of Commission.

- The [Government of the State of Punjab]

[Substituted for the word "State Government" by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

may remove any member of the Commission -

(i)

if he refuses to act or becomes in the opinion of the [Government of the State of Punjab]

[Substituted for the word [State Government] by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

incapable of acting or unfit to act as a member; or

(ii)

if he has absented himself from more than three consecutive meetings of the Commission; or

(iii)

if it is satisfied after such enquiry as it may deem necessary that he has flagrantly abused his position as a member; [or]

[The word "or" was first omitted by Punjab Act 11 of 1944, Section 18 but later on added by Punjab Act 11 of 1954, Section 2.]

(iv)

[if he has served as a member for more than two years.]

[Added by Punjab Act 11 of 1954, Section 2. Previously clause (iv) was omitted by Punjab Act 11 of 1944, Section 18.]

80.

Election of president of Commission.

(1)

The member of the Commission shall elect one of themselves to be president of the Commission.

(2)

If the Members of the Commission are unable within ten days of the constitution of the Commission to elect a president by a majority of votes, a president may be appointed by the [Government of the State of Punjab]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950, Substituted for the word "State Government" by Central Government Notification No. S.O. 600(E) dated 19.10.1978.]

(3)

No proceedings shall be taken by the Commission unless at least two members are present and sitting together : provided that notices and summonses may be issued by the president or a member nominated by the president for this purpose, sitting alone.

(4)

If the president is not present the two members present shall decide which of them shall preside, and the member decided upon shall perform the duties of president.

81.

Settlement of difference of opinion in Commission.

- In case of difference of opinion between the members of the Commission the opinion of the majority shall prevail : provided that, if only two members are present of whom one is the president and if they are not in agreement, the opinion of the president shall prevail : and if the president is not present, and the two remaining members are not agreed, the question in dispute shall be kept pending until the next Meeting of the Commission at which the president is present, and the opinion of the majority or of the president when only two members are present shall be deemed to be the opinion of the Commission.

82.

Costs in proceedings may be made payable out of income of Sikh Gurdwara.

- The costs, charges and expenses of, and incidental to, any proceedings of the Commission shall be in the discretion of the Commission, and the Commission may in disposing of any proceedings direct that the whole or any part of such expenses shall be paid by any party to such proceedings or out of the property or income of the notified Sikh Gurdwara

to which the proceedings relate.

83.

Dissolution of Commission.

- The [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government may at any time, when there is no proceeding pending before the Commission, dissolve the Commission.

84.

Decision as to whether a person is or is not a patit.

- If it is necessary to decide for the purposes of the constitution of the Board or a committee, under the provisions of this Act, whether a person has or has not become a patit the question shall on application being made thereto for this purpose be decided by the Commission.

Chapter VIII

Committees Of Gurdwaras

[85].

[Substituted for the old section by Punjab Act 11 of 1944, section 19.]

[(1) The Board shall be the Committee of Management for the Gurdwaras known as -

(i)

The Sri Akal Takhat Sahib at Amritsar and Sri Takhat Keshgarh Sahib, Anandpur;

(ii)

The Darbar Sahib, Baba Atal Sahib and all other Notified Sikh Gurdwaras other than Sri Akal Takhat Sahib, situated within the Municipal boundaries of Amritsar;

(iii)

Sri Darbar Sahib and all other Notified Sikh Gurdwaras within the limits of Municipal area of Tarn Taran;

(iv)

All the Notified Sikh Gurdwaras at Anandpur and the gurdwaras connected therewith other than the Sri Takhat Keshgarh Sahib;

(v)

The Notified Sikh Gurdwaras at Muktsar;

(vi)

Gurdwara Dukhniwaran Sahib Padshahi Naumi along with Gurdwara Moti Bagh (including Gurdwara Sudha Sar) Khel Sahib, Patiala;

(vii)

Gurdwara Fatehgarh Sahib (Shahidi Asthan Baba Fateh Singh Ji and Baba Jorawar Singh Ji) along with Gurdwara Jotisarup, Burj Mata Gujri and Shahid Ganj situated in Harnam Nagar;

(viii)

[Gurdwara Padshahi Naumi at Dhamtan along with Bunga Dhamtanian near Railway Station, Patiala;]

(ix)

Gurdwara Guru Teg Bahadur Sahib in Jind with Gurdwaras Kharak Bhura Padshahi Naumi and Khatkar Padshahi Naumi in Tehsil Nawana;

(x)

Gurdwara Ber Sahib (Padshahi Pehli) at Sultanpur Lodhi along with Gurdwaras Hat Sahib, Kothri Sahib, Sehra Sahib, Sant Ghat and Guru Ka Bagh;

(xi)

Gurdwara (Padshahi Naumi and Dasmi) Damdama Sahib at Talwandi Sabo along with Gurdwaras [* *]

[The word [Mastuana] omitted by Punjab Act

No. 10 of 1959

, Section 2(b).]

Takhat Sri Damdama Sahib, Jandsar and Bunga Kattuwalla at Sabo Ki Talwandi, Gurdwara Sri Damdama Sahib Bunga Mata Sahib Dewan Ji at Talwandi Sabo, Gurdwara Sahib Padshahi Dasmi Takhat Damdama Sahib, Bhai Bir Singh Dhir Singh, Mazhabi Singh Wala at Talwandi Sabo, Gurudwara Sahib Takhat Sri Damdama Sahib Malwai Bunga Padshahi Dasmi at Talwandi Sabo, Sri Damdama Sahib Bunga Likhansar Padshahi Dasmi, Sri Damdama Sahib Gurdwara Sri

Holsar Padshahi Dasmi, at Talwandi Sabo Ki :

(xii)

Gurdwara Nanakiana Sahib, Sangrur.]

(2)

The Board shall, [* * *]

[The words [in consultation with local committees] omitted by East Punjab Act 32 of 1949, Section 3.]

prepare a scheme for administration and management of the Gurdwaras described in sub-section (1), their property, endowments, funds and income. Thereafter, this scheme may be modified or amended from time to time by a resolution of the Board passed by a majority of two-thirds of the members present in the meeting.

[* * *]

[The words "after consulting the local committee for the Gurdwara or Gurdwaras concerned, constituted under sub-section (3)" omitted by East Punjab Act 32 of 1949, Section 3.]

[* * *]

[Proviso omitted by Punjab Act No. 1 of 1959, Section 25(b).]

(3)

[* * *]

[Sub-sections (3), (4) and (5) omitted by East Punjab Act 32 of 1949, section 3(b).]

.

(4)

[* * *]

[Sub-sections (3), (4) and (5) omitted by East Punjab Act 32 of 1949, section 3(b).]

.

(5)

[* * *]

[Sub-sections (3), (4) and (5) omitted by East Punjab Act 32 of 1949, section 3(b).]

.

86.

Committees of gurdwaras other than those specified in section 85.

- [(1)]

[Section 86 renumbered as sub-section (1) and sub-section (2) added by Punjab Act No. 1 of 1959, Section 26.]

For every Notified Sikh Gurdwara other than a gurdwara specified in section 85 a committee shall be constituted after it has been declared to be a Sikh Gurdwara under the provisions of this Act, or after the provisions of Part III have been applied to it under the provisions of section 38, provided that the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government may by notification direct that there shall be one committee for any two or more such gurdwaras specified in the notification, and may in like manner cancel or modify such notification, provided further that the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government shall not issue, cancel or modify any such notification after constitution of the first Board, except upon recommendation being made to it in this behalf by the Board.

(2)

[Notwithstanding anything contained in sub-section (1), the Gurdwaras at Narnaul and Mahendragarh shall be managed by the Board.]

[Section 86 renumbered as sub-section (1) and sub-section (2) added by Punjab Act No. 1 of 1959, Section 26.]

[86-A. * * *]

[Section 86-A was inserted by Punjab Act 11 of 1944, Section 20, and omitted by Punjab Act 53 of 1953, Section 10.]

[87. Constitutions of committee not specially provided for. - (1) Every Committee shall consist of five members out of which one at least shall be a person belonging to the scheduled castes and shall be constituted as follows :-

(a)

[The Board shall nominate the members, with their written consent, of the committee of the Gurdwara or Gurdwaras, whose gross annual income does not exceed three thousand rupees, who shall be residents of the district in which the Gurdwara or one of the Gurdwaras to be managed by the Committee is situated:

Provided that the Board may, if it so decides, instead of nominating the members, manage the affairs of any such Gurdwara itself in accordance with the provisions of the Act.

(b)

The committee of Gurdwara or Gurdwaras, whose annual monetary income exceeds three thousand rupees, shall consist of four elected members and one member nominated by the Board who shall be resident of the district in which the Gurdwara or one of the Gurdwaras to be managed by the Committee is situated.

If in the election, the required number of members is not elected, the Board may nominate such number of persons as have not been elected so as to complete the Committee for such a Gurdwara or Gurdwaras; provided that the person or persons so nominated shall be the resident or residents of the district in which the said Gurdwara or Gurdwaras are situated.]

(2)

If the Board fails to nominate a member or members of the Committee in accordance with the provisions of clause (a) or (b) the manager and if there is no manager, then Granthi or Granthis of Gurdwara or Gurdwaras shall either by himself or themselves or along with the nominated or elected member or members, if any, as the case may be, perform the duties of the Committee till such time as the Board nominates the required number of members of the Committee.]

[Substituted by Punjab Act 1 of 1959, Section 27.]

88.

Constitution of committees :

publication of constitution and effect thereof. - [(1) The Committees shall be constituted as soon as may be after the constitution of the Board; provided that no Committee shall be constituted for any Gurdwara under the provisions of this Act before it has been declared to be a Sikh Gurdwara under the provisions of this Act or the provisions of Part III have been applied to it under the provisions of section 38.]

[Substituted by Punjab Act 53 of 1953, Section 12(a).]

(2)

[* * *]

[Substituted for the old sub-sections (2) and (3) by East Punjab Act 32 of 1949, Section 4 and sub-section (2) omitted by Punjab Act 53 of 1953, Section 12(b).]

(3)

[As and when a member or members of any Committee have been nominated in accordance with the provisions of clause (a) of sub-section (1) of section 87 or have been elected or nominated, as the case may be, in accordance with the provisions of clause (b) of sub-section (1) of Section 87, the State Government shall notify these facts and when all the members of such Committee have been nominated or have been elected [the Chief Commissioner when in existence otherwise the Commissioner, Gurdwara Elections]

[Substituted by Punjab Act 1 of 1959, Section 28.]

the further fact that the Committee has been duly constituted and the date of the publication of last mentioned notification shall be deemed to be the date of the constitution of the Committee.]

[Substituted by Punjab Act No. 1 of 1959, Section 25(a).]

[89. Election of member. - (1) The elected members of a Committee, referred to in clause (b) of sub-section (1) of Section 87, shall be elected, by a constituency formed, subject to the approval of the State Government, by the Board in a general meeting.

(2)

The Board may in a general meeting and subject to the approval of the State Government, from time to time, vary any constituency formed under the provisions of sub-section (1).

(3)

When any constituency to elect members of a Committee is formed or varied according to the provisions of sub-section (1) or (2), as the case may be, the State Government shall notify the fact of the constituency having been so formed or varied and the date of the publication of the notification shall be the date from which the information or variation of the constituency shall take effect.]

[Sections 89 and 90 inserted by Punjab Act

10 of 1959

, Section 4.]

90.

Qualification for election to committee.

(1)

A person shall not be eligible for election as a member of a Committee if such person -

(i)
is not registered on the roll of any constituency formed for the purposes of this Act; or

(ii)
is of unsound mind; or

(iii)
is an undischarged insolvent; or

(iv)
is a minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or any of the four Sikh Takhts specified in clause (ii) of sub-section (1) of Section 43; or

(v)
is a paid servant of any Notified Sikh Gurdwara or of the Board; or

(vi)
is a patit; or

(vii)
is not a Sikh; or

(viii)
being a keshadhari Sikh is not an Amritdhari; or

(ix)
takes alcoholic drinks, or

(x)
not being a blind person cannot read or write Gurmukhi.

Explanation. - For purposes of clause (x) a person shall be deemed to be able to-

(a)
read Gurmukhi, if he is able to recite Shri Guru Granth Sahib in Gurmukhi, and

(b)
write Gurmukhi if he fills his nomination paper for election to the Committee in Gurmukhi in his own handwriting. If any question arises whether a candidate is or is not able to read and write Gurmukhi, the question shall be decided in such manner as may be prescribed.

(2)

Notwithstanding anything contained in sub-section (1), no person shall be prevented from standing as a candidate at any election on the ground that he is a patit, but if he is elected and thereafter found, under the provisions of section 84, to be patit, his election shall be void.]

91.

Qualification for nomination to a committee.

- A person shall not be nominated [* * *]

[The words [or co-opted] were inserted by Punjab Act 11 of 1944, Section 25(a) and omitted by Punjab Act No. 1 of 1959, Section 29(a).]

to be member of a committee if he -

(i)
is less than twenty-one years of age; or

(ii)
is of unsound mind; or

(iii)
is an undischarged insolvent; or

(iv)
is a patit [or not a Sikh]

[Inserted by Punjab Act 11 of 1944, Section 25(b).]

; or

(v)

is a minister of a Notified Sikh Gurdwara other than the head minister of the Darbar Sahib, Amritsar, or any of the four Sikh Takhts specified in clause (ii) of sub-section (1) of Section 43; or

(vi)

is a paid servant of a Notified Sikh Gurdwara;

(vii)

[being a keshadhari Sikh is not an amritdhari; or

[Inserted by Punjab Act 11 of 1944, Section 25(c).]

(viii)

takes alcoholic drinks; or

(ix)

[not being a blind person cannot read or write Gurmukhi.]

Explanation. - For purposes of clause (ix) a person shall be deemed to be able to -

(a)

read Gurmukhi if he is able to recite Shri Guru Granth Sahib in Gurmukhi; and

(b)

write Gurmukhi if he fills his nomination paper for election to the Board in Gurmukhi in his own handwriting. If any question arises whether a candidate is or is not able to read and write Gurmukhi the question shall be decided in such manner as may be prescribed.]

[92. Qualification of electors. - Every person shall be entitled to have his name registered on the electoral roll of a constituency for the election of a member or members of a Committee who is a resident in the constituency, and is a Sikh more than twenty-one year of age and has had his name registered as a voter in such manner as may be prescribed :

[Provided that no person shall be registered as an elector who -

(a)

trims or shaves his beard or keshas;

(b)

smokes; and

(c)

takes alcoholic drinks.]

93.

Right to vote.

(1)

Every person registered on the electoral roll for the time being in force for any constituency for the election of a member or members of the Board shall be entitled while so registered to vote at an election of a member or members for that constituency, provided that no person shall be entitled to vote at an election in more than one constituency.]

[Sections 92 and 93 inserted by Punjab Act

10 of 1959

, Section 4. These were previously omitted by Punjab Act 1 of 1958, Section 42.]

94.

Period of continuance of committees.

- Every Committee shall continue for [five]

[Substituted for the word [three] by Punjab Act 11 of 1944, Section 28.]

years from the date of its constitution or until a new committee has been constituted, whichever is later.

[94-A. Incorporation of committees. - Every committee shall be a body corporate by the name of the Committee of Management of the Gurdwara or Gurdwaras under its management and shall have perpetual succession and a common seal and shall sue and be sued in its corporate name.]

[Section 94-A inserted by Punjab Act

3 of 1930

, Section 7.]

[95. Effect of subsequent disability to service as a member of a committee. - (1) If any person having been elected or nominated a member of a committee becomes [or, is found to be by the Board]

[Substituted for the old section by Punjab Act

3 of 1930

, Section 8.]

subject to any of the disabilities stated in section 90 or 91, as the case may be, he shall cease to be a member thereof.

(2)

[Any person aggrieved by the finding of the Board mentioned in sub-section (1) of this section may, within a month of the date of his knowledge of such finding, appeal to the Commission for setting aside the said finding and the order of the Commission passed in this respect shall be final :

Provided that the person against whom any such finding is given by the Board shall not cease to be a member of the Committee until the order of the Commission in appeal, or, if no appeal is preferred until the time allowed for preferring an appeal has passed.]

(3)

If any person having been elected or nominated a member of the Committee absents himself from three consecutive meetings of the Committee, his name may be removed from membership by the Committee, provided that, if he applies to the Committee within one month of the removal of his name to be restored to membership, the Committee may, at the meeting next following the date of the receipt of such application, restore him to office, provided further that no member shall be so restored more than three times to the same Committee.]

[Sub-section (2) added and old sub-section (2) renumbered as sub-section (3) by Punjab Act 42 of 1953, Section 3.]

[96. Vacancies in committees. - On the occurrence of a vacancy in a Committee, a new member shall be elected or nominated, as the case may be, in the manner in which his predecessor was elected or nominated and if no member is duly elected to replace an elected member, the Board may nominate any qualified person to fill the vacancy in accordance with the provisions of section 87 and the fact of filling the vacancy shall be notified by the State Government under sub-section (3) of Section 88.]

[Inserted by Punjab Act

No. 10 of 1959

, Section 5.]

97.

[

*****]

[Omitted by Punjab Act No. 53 of 1953, Section 17.]

[98. Committees to meet at least three times a year. - (1) Every committee shall meet at least three times in each year.

(2)

If no meeting has been held for a period of four months, any two members of the Committee may, by giving reasonable notice to the other members residing in India, convene a meeting of the Committee.]

[The original section 98 was renumbered as sub-section (1) and sub-section (2) was added by Punjab Act

3 of 1930

, section 9.]

99.

Notice of meeting.

- A meeting of a committee shall be called by the president by seven days' notice in writing, provided that if the office of president is vacant, the vice-president shall, and if the office of vice-president is also vacant, any two members of a committee may, by giving reasonable notice to the other members, convene a meeting [* * *]

[Omitted by Punjab Act No. 1 of 1959, Section 31.]

.

100.

Quorum of committee.

- No business shall be conducted or any proceeding held by a committee except at a meeting at which three or more members are present.

101.

Presidents and vice-presidents of committees.

(1)

Every committee shall at its first meeting [which shall be called by the General Secretary of the Board or any person specially authorised by him in the behalf within sixty days of the constitution of the Committee]

[Inserted by Punjab Act No. 1 of 1959, Section 32.]

elect a member to be president and another member to be vice-president and each of the members so elected shall hold office during the continuance of the committee or until he resigns or ceases to be a member of the committee.

(2)

An outgoing president or vice-president shall, if otherwise qualified be eligible for re-election.

(3)

At meetings of the committee the president shall be chairman; if he is absent the vice-president shall be chairman, and if both the president and the vice-president are absent, the members present shall elect one of themselves to be chairman for the purposes of the meeting.

102.

Decisions of questions before committees.

- All questions which come before a committee shall be decided by a majority of the votes of the members present, and in cases of an equality of votes the chairman shall have a second or casting vote.

103.

Minutes to be recorded.

- All resolutions and orders of a committee shall be recorded in writing in a minute book and the record shall be signed by the Chairman of the meeting.

104.

Resignation of president and members of committee.

(1)

A member of a committee other than the president may resign his office by giving notice to the president and a president may resign his office by giving notice to the committee [and by informing the Board of his resignation.]

[Added by Punjab Act 1 of 1959, Section 33(a).]

(2)

The resignation shall take effect in the case of a member from the date of its acceptance by the president, and in the case of a president from the date of its acceptance by the committee.

(3)

[If the resignation of a member is accepted by the President he shall immediately inform the Board about such acceptance to enable the Board to fill the vacancy caused thereby.

(4)

As soon as may be after the constitution of the Committee or the office of the President falling vacant, the Board shall call a meeting of the committee to elect the office-bearers or to fill the vacancy of the President as the case may be.]

[Added by Punjab Act 1 of 1959, Section 33(b).]

[104-A. Servants of the Committee, their appointment and punishment. - The Committee may appoint such servants as it may deem necessary for the due performance of its duties, and may, from time to time determine the number, designations, grades and scale of salary, or other enumeration of such servants, and may at any time for good cause fine, reduce, suspend or remove any servant.]

[Added by Punjab Act 53 of 1953, Section 18.]

[105. Exclusion of Board acting as committee from operation of this chapter. - The Committee constituted under the provisions of section 85 shall not be affected by any other provision of this Chapter.]

[Substituted by Punjab Act 53 of 1953, Section 19.]

Chapter IX

Finances

106.

Object on which the funds of a gurdwara may be spent.

(1)

Subject to the provisions of this Act, all properties and income of a Notified Sikh Gurdwara shall be used, in the first

place, for the maintenance or improvement of the gurdwara; for the maintenance of religious worship and the performance and conduct of religious and charitable duties, ceremonies and observances connected therewith; for the payment of allowances or salaries of dependents, officers and servants thereof; for the fulfilment of the objects of the endowments thereof; for the maintenance of the langar; for such religious, charitable or educational purposes as the committee may consider necessary in connection therewith or for the discharge of any obligations legally incurred.

(2)

When after providing for the purposes specified in sub-section (1) there remains or appears likely to remain any surplus sum or any income not required for any such purposes, the committee may, by resolution passed by not less than two-third of its members propose to allocate a part of the whole of such surplus sum or income to a particular religious, educational or charitable purpose [or any purpose which promotes social welfare]

[Inserted by Punjab Act No. 1 of 1959, Section 34.]

and may, if the Board in writing sanctions such proposal, act in accordance therewith, provided that any proposal so sanctioned to devote to such purpose income accruing during a period of more than three years at any time not sooner than three years after the proposal was sanctioned be rescinded or varied by a subsequent resolution of the committee passed in like manner.

(3)

Notwithstanding anything contained in sub-section (2) when it appears to be Board that after providing for the purposes specified in sub-section (1) there remains or is likely to remain any surplus sum or income not required for any such purposes, and the committee is not willing to devote such surplus sum or income to other purposes, the Board may apply to the Commission for an order allowing the Board to devote the whole or part of such surplus sum or income to a particular and specified religious, educational or other charitable purpose [or any purpose which promotes social welfare.]

[Inserted by Punjab Act No. 1 of 1959, Section 34.]

(4)

When application has been made in accordance with the provision of sub-section (3) the Commission may, after hearing the objection, if any, of the committee or of any person having interest in the gurdwara concerned if it is satisfied that the application is reasonable, determine what portion if any of such surplus sum or income shall be retained as a reserve fund for the gurdwara concerned and direct the remainder of the surplus sum or income to be devoted to any such religious, educational and charitable purpose as it may deem proper, and the Commission may, from time to time, on the application of the Board or of the committee or of a person having interest in the gurdwara concerned, rescind or vary any order passed under the provisions of this sub-section.

(5)

A Committee or the Board if it is aggrieved by an order passed under sub-section (4) may, not later than ninety days after the passing of the order, appeal to the High Court and the High Court may confirm the order or pass any such order as the Commission might have passed instead of the order appealed against.

(6)

[Nothing contained in sub-sections (2), (3), (4) and (5) shall apply to the Board when acting as a Committee of Management under section 85 of this Act. In the case of such a committee when after providing for the purposes specified in sub-section (1) there remains or appears likely to remain any surplus sum or any income not required for such purposes, the committee may by a resolution passed by not less than two-thirds of the members present in the meeting; provided that the meeting is attended by not less than one-half of the total members constituting the committee, utilize or allocate a part or the whole of such surplus sum or income of any particular gurdwara under its management to a particular religious, educational, charitable or industrial purpose :

Provided further that an allocation so made to devote to such purpose income accruing during a period of more than three years may at any time not sooner than three years after the allocation was made be rescinded or varied by a subsequent resolution of the committee passed in the like manner.]

[106-A. Utilization of surplus income. - Any surplus sum or any income of a notified Sikh Gurdwara not required immediately for purposes mentioned in sub-section (1) of Section 106 may be placed to the credit of the Committee in such Bank as approved, generally by the Board in general meeting or be invested in one or more Government securities or National Saving Certificates or in purchasing immovable property for Gurdwaras under its management.]

[Inserted by Punjab Act No. 1 of 1959, Section 35.]

107.

Annual contribution to Board.

(1)

Every committee shall pay annually to the Board for the purpose of meeting the lawful expenses of the Board a contribution in money out to the income of the gurdwara or gurdwaras under its management.

(2)

[The proportion which such contribution shall bear to the annual income of a gurdwara shall be fixed for each gurdwara by the Board : provided that it shall not exceed one-tenth of such income.]

[Substituted for the old sub-section by Punjab Act 11 of 1944, Section 34.]

(3)

[The Board shall be competent to reduce the amount of contribution due to the Board from any committee or gurdwara in any year for special reasons. Further the Board, shall have power to prescribe the limit or annual income of the gurdwara or gurdwaras which may be totally exempted from making the contribution payable to the Board under the provisions of this section.]

[Added by Punjab Act 11 of 1994, Section 35.]

108.

Formation of General Board Fund.

(1)

The Board shall establish and maintain a fund to be called the General Board Fund, and there shall be placed to the credit thereof the following sums namely :-

(i)

all the annual contributions paid to the Board under the provisions of section 107;

(ii)

all the fees for copies of accounts and of entries in registers levied by the Board under the provisions of sub-section (2) of section 114 and sub-section (8) of Section 137.

(2)

No sums other than those specified in sub-section (1) shall be placed to the credit of the General Board Fund.

(3)

[The General Board Fund shall be applied solely to the payment of expenses lawfully incurred by the Board in the exercise of its powers under the provisions of this Act, towards the discharge of obligations legally incurred and towards the maintenance, protection and support of such historical gurdwaras which in the opinion of the Board cannot be maintained, protected or provided for otherwise, provided that if after paying such expenses and discharging such obligations and affording such protection any surplus sum remains, such surplus sum, [may be spent by the Board on any religious or charitable purposes or any other purpose which promotes social welfare]

[Substituted for the old section by Punjab Act 11 of 1944, Section 36.]

and on such non-political purposes as are connected with the general uplift and welfare of the Panth as the Board may deem fit.]

[Added by Punjab Act 11 of 1944, Section 33.]

(4)

No part of the General Board Fund shall be expended upon the administration of any trust fund described in section 111 or section 112, or upon the object of any such trust fund except in so far as such expenditure may be permissible under the provisions of sub-section (3).

[108-A. Research fund. - Notwithstanding anything contained in this Act there shall be established a research fund of the Board to which the Board shall contribute at least twenty thousand rupees per annum from the fund of the Board or from the income of the Gurdwara managed by the Board under section 85 for the purpose of carrying out research in Sikh history and publication of books and journals in connection therewith. Any income realized from the sale of such publications or any contributions made by the public in this behalf shall also be credited to the research fund. This fund shall be administered by a Committee consisting of five persons appointed by the Board out of its members or otherwise. The Board may frame rules for the administration of this fund.

108.

-B. Religious fund.

(1)

There shall be established by the Board a religious fund for the purposes of propagating the Sikh religion and matters connected therewith to which shall be contributed by every committee of management of notified Sikh Gurdwara as follows :

(a)

five per centum of its gross annual income in the case of a committee having gross annual income exceeding five thousand rupees, but not exceeding thirty thousand rupees;

(b)

seven per centum to its gross annual income in the case of a committee having gross annual income exceeding thirty thousand rupees but not exceeding fifty thousand rupees;

(c)

ten per centum of its gross annual income in the case of a committee having gross annual income exceeding fifty thousand rupees but not exceeding one lakh and fifty thousand rupees; and

(d)

fifteen per centum of its gross annual income in the case of committee having gross annual income exceeding one lakh and fifty thousand rupees.

(2)

(i)

[This fund shall be administered by a Committee consisting of the President of the Board and seven persons appointed by the Board in general meeting out of its members other than the members and office-bearers of the Executive Committee except the President or otherwise in the prescribed manner:

Provided that if a member of the above Committee is elected a member or office-bearer of the Executive Committee of the Board except the President, he shall cease to be a member of the said Committee after such election.]

(ii)

The Board in general meeting may frame rules for the administration of this fund.

(iii)

The term of this committee shall expire on the expiry of the term of the Board appointing it.

108.

-C. Research and religious fund to be governed by the Act.

- All the provisions of this Act relating to the administration and deposit of the General Board Fund and other trust funds shall, as far as may be, apply to the funds established under sections 108-A and 108-B.]

[Clause (i) of sub-section 2 of Section 108-B substituted by Punjab Act

10 of 1959

, Section 6.]

109.

Funds transferred to Board by Shromani Gurdwara Parbandhak Committee.

- If any sum is transferred to the Board by the Shromani Gurdwara Parbandhak Committee, then :-

(i)

any portion thereof held on behalf of a Notified Sikh Gurdwara shall be paid, as soon as may be, to the committee of such gurdwara, and any portion held on behalf of any other place of worship shall be paid to such person acting on behalf of the place of worship, as the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government approve;

(ii)

any portion not required to be paid under the provisions of clause (i) shall, in the first place, be used to discharge such debts of the Shromani Gurdwara Parbandhak Committee as may be legally recoverable;

(iii)

any portion remaining after the debts of the Shromani Gurdwara Parbandhak Committee have been discharged as required by clause (ii) shall be set apart for such religious, charitable or educational purposes as the Board in general meeting may determine, provided that any portion not so set apart within one year from the constitution of the first Board shall be handed over to the committee described in sub-section (2) of Section 85 and shall form part of the funds of that

Committee.

110.

Funds held in trust by the Board for specified purposes.

- Every sum made over to the Board under the provisions of this Act by a committee of a Notified Sikh Gurdwara or otherwise received by the Board for a specified religious, charitable, [industrial]

[Inserted by Punjab Act 11 of 1944, Section 37.]

or educational purpose shall be held by the Board as a trust and shall be devoted to the purpose specified.

111.

General Trust Fund.

- Every sum other than a sum specified in section 107, 109 or 110 or sub-section (2) of Section 114 or sub-section (8) of Section 137 shall be placed to the credit of a fund to be called the General Trust Fund out of which the Board in general meeting may from time to time make allotments for the discharge of any obligations legally incurred in connection therewith or for such religious, charitable [industrial]

[Inserted by Punjab Act 11 of 1944, Section 37.]

, or educational purpose as the Board may consider proper or for grants-in-aid for the maintenance or service of Notified Sikh Gurdwaras.

112.

Separate funds to be maintained for each trust.

- The Board shall establish and maintain a separate fund in respect of each trust held in accordance with the provisions of clause (iii) of Section 109 or of section 110 and may discharge out of each fund any obligations legally incurred in connection therewith.

113.

Trust funds to be deposited in banks.

- (1) Every sum received by the Board in connection with any fund shall be placed to the credit of the fund in such bank as the Board in general meeting may direct.]

[Section 113 renumbered as sub-section (1), and new sub-section (2) added by Punjab Act No. 27 of 1953, Section 2.]

(2)

[The Board may invest any portion of its fund in one or more Government securities or Defence Savings Certificates [or in purchasing immovable property]

[Section 113 renumbered as sub-section (1), and new sub-section (2) added by Punjab Act No. 27 of 1953, Section 2.]

and the income or proceeds derived or obtained therefrom shall be credited to the fund from which the investment was made.]

[Sections 108-A, 108-B, and 108-C, inserted by Punjab Act 1 of 1959, Section 37.]

114.

Board to maintain accounts of all trust funds and a General Board Fund.

(1)

The Board shall maintain regular accounts showing receipts on account of and expenditure out of the General Board Fund and separate similar accounts for each fund established under the provisions of section 112 and for the General Trust Fund.

(2)

Any person having interest in a Notified Sikh Gurdwara, shall, on application being made to the Board, be furnished with a copy, certified to be correct by the President or other member of the executive committee authorised by the president on this behalf, of the whole or of any specified part of such account.

(3)

The Board shall charge for copies of accounts furnished under the provisions of sub-section (1) such fees as are charged for copies of records under the control of Deputy Commissioners of districts under the rules for the time being in force in Punjab.

115.

Audit of accounts.

(1)

The accounts described in section 114 shall be audited and examined once in every year by such auditor as may from

time to time be appointed by the [Government of the State of Punjab]

[Substituted for the words 'State Government' by Central Government Notification No. S.O. 506(E) dated 26.7.1972.]

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(2)

For the purposes of any such audit and examination of accounts the auditor may, by a demand in writing, require from the Board or any member or servant of the Board the production before him of all books, deeds, vouchers and all other documents and papers which he deems necessary and may require any person holding or accountable for any such books, deeds, vouchers, documents or papers to appear before him at any such audit and examination, and to answer all questions which may be put to him with respect to the same or to prepare and submit any further statement which such auditor may consider necessary.

116.

Auditors report.

- (1) Within thirty days after the audit and examination have been completed the auditor shall submit a report to the Board upon each account audited and examined, and shall forward copies of his reports to the [Government of the State of Punjab]

[Substituted for the words "State Government" by Central Government Notification No. S.O. 506(E) dated 26.7.1972.]

and to the Commission.

(2)

The report of the auditor shall among other matters specify all items of expenditure which in his opinion are illegal, irregular or improper, all cases of failure to recover money or property due to the Board, all instances of loss or wasteful expenditure of money or property due to negligence or misconduct and all instances in which any money or property has been devoted to any purpose not authorised by this Act.

(3)

[Within two months from the date of the consideration of the report under section 117, the Board shall cause the report and abstract of each account to be published in [two newspapers one of which must be published daily].]

[Substituted by Punjab Act 53 of 1953, Section 20(a).]

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(4)

[If the Board fails to cause the report to be published in accordance with sub-section (3), the Commission or the [Government of the State of Punjab]

[Added by Punjab Act 53 of 1953, Section 20(b).]

may get it so published, and the expenses incurred in this behalf shall be paid by the Board, and shall be recoverable as if it were an arrear of land revenue.]

[117. Board to consider auditor's report. - The Board in its general meeting next following the date of the receipt of the auditor's report shall consider such report and satisfy itself that no expenditure shown therein has been incurred otherwise than in accordance with the provisions of this Act and shall pass such orders as are in its opinion necessary and proper to rectify any illegal, unauthorised or improper expenditure, and may also, pass such further order upon the report as it may deem proper :

Provided that if the next general meeting falls on a day earlier than two months after the receipt of the report it shall be considered in the general meeting next following].

118.

Payment of expenses of audit.

(1)

The expenses incurred in the audit and examination of the accounts of any fund maintained by the Board in accordance with the provisions of this Act shall be paid out of that fund.

(2)

If payment of the expenses referred to in sub-section (1) is not made within three months from the date of the submission of a report as described in section 116, the [Government of the State of Punjab]

[Substituted for the words "State Government" by Central Government Notification No. S.O. 506(E) dated 26.7.1972.]

may, on application to it being made within six months from such date by the auditor, recover the amount due as if it were an arrear of land revenue.

119.

Budget of Board.

(1)

The Executive Committee shall lay before the Board at a general meeting to be held each year at such time as may be prescribed, an estimate of the income and expenditure for the ensuing financial year of the Board and of each separate fund administered by the Board.

(2)

The Board shall in general meeting take into consideration every estimate laid before it by the executive committee, and it shall be in the discretion of the Board to pass or reject such estimate or to modify or alter it and to pass it as so modified or altered.

120.

Accounts to be maintained by Committees.

(1)

The Committee [* * * *]

[The words "or a local committee" inserted by Punjab Act 11 of 1944, Section 39 and omitted by Punjab Act 53 of 1953, Section 22.]

of every Notified Sikh Gurdwara shall maintain a regular account, showing all sums received on behalf of and all disbursements made out of the funds and income of the gurdwara.

(2)

Any person having interest in the gurdwara shall, on application to the Secretary of the Committee [* * * *]

[The words "or a local committee" inserted by Punjab Act 11 of 1944, Section 39 and omitted by Punjab Act 53 of 1953, Section 22.]

, be furnished with a copy of the whole or any part of such account.

(3)

The Committee [* * * *]

[The words "or a local committee" inserted by Punjab Act 11 of 1944, Section 39 and omitted by Punjab Act 53 of 1953, Section 22.]

, shall charge for copies furnished under the provisions of sub-section (1) such fees as are charged for copies of records under the control of Deputy Commissioners of districts under the rules for the time being in force in Punjab.

121.

Audit of committee's account.

(1)

Subject to the provisions of sub-section (5), every account described in section 120 shall be audited and examined once in every year by an auditor appointed by the Board.

(2)

The accounts of [the Board acting as a Committee under the provisions of section 85]

[Substituted for the words "the local committees described in section 85" by Punjab Act 53 of 1953, section 23.]

shall be audited by an auditor [appointed by the [Government of the State of Punjab]

[Substituted for the words 'who may act as auditor under the provisions of section 144 of the Indian Companies Act, 1913' by Punjab Act 1 of 1959 Section 40.]

[Substituted by Punjab Act 53 of 1953, Section 21.]

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(3)

The Board shall maintain a list of not less than five auditors nominated by the Board with the previous sanction of the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government for the purpose of the audit of the accounts of committees other than those specified in sub-section (2), and no auditor, whose name is not on the list, shall be appointed to audit such accounts.

(4)

If within six months of the constitution of the Board the Board has failed to nominate auditors as required by sub-section (3) the [State] Government may appoint such number of auditors as are necessary to complete the list.

(5)

The committee of any Notified Sikh Gurdwara whose gross annual monetary income does not exceed two thousand rupees, may, with the sanction of the Board cause the account of such gurdwara to be audited less frequently than on in every year or may with like sanction dispense with the audit and examination of such account.

(6)

For the purpose of any such audit and examination the auditor may by a demand in writing, require from the committee or any member or servant of the committee the production before him of all books, deeds, vouchers and all other documents and papers which he deems necessary, and may require any person holding or accountable for any such books, deeds, vouchers, or papers to appear before him at any such audit and examination and to answer all questions which may be put to him with respect to the same or to prepare and submit any further statement which such auditor may consider necessary.

122.

Report of Auditor.

(1)

Within thirty days after the audit and examination have been completed the auditor shall report to the committee of the gurdwara upon the accounts audited and examined and shall forward a copy of his report to the Board, and in the case of the accounts of [the Board acting as Committee under the provisions of section 85]

[Substituted for the words "the Committee" described in clause (ii) of sub-section (1) of Section 85" by Punjab Act 53 of 1953, Section 24(a).]

, shall forward a copy to the [Government of the State of Punjab]

[Substituted for the words 'State Government' by Central Government Notification No. S.O. 506(E) dated 26.7.1972.]

also.

(2)

(i)

The report of the auditor shall, among other matters, specify all items of expenditure which in his opinion are illegal, irregular or improper, all cases of failure to recover money or property due to the gurdwara, all instances of loss or wasteful expenditure of money or property due to negligence or misconduct and all instances in which any money or property has been devoted to any purpose not authorised by this Act.]

[Sub-section (2) renumbered as clause (i) of sub-section (2) and clause (ii) added by Punjab Act, 53 of 1993, Section 24(b).]

(ii)

[The Committee shall consider the report of the auditor and satisfy itself that no expenditure shown therein has been incurred otherwise than in accordance with the provisions of this Act and shall pass such orders as are in its opinion necessary and proper to rectify any illegal, unauthorised or improper expenditure, and may also pass such further orders upon the report as it may deem proper.]

[Sub-section (2) renumbered as clause (i) of sub-section (2) and clause (ii) added by Punjab Act, 53 of 1993, Section 24(b).]

(3)

[The auditor's report upon the account of a gurdwara shall be open to inspection by any Sikh, provided that reasonable notice of intention to inspect is given by such Sikh to the committee.]

[Renumbered by Punjab Act 4 of 1926, Section 2.]

(4)

[The expenses incurred in the audit and examination of the accounts of a gurdwara shall be paid out of the income of the gurdwara.]

[Renumbered by Punjab Act 4 of 1926, Section 2.]

(5)

[If payment of expenses referred to in sub-section (4) is not made within three months from the date of the submission of the report in accordance with sub-section (1), the [Government of the State of Punjab]

[Added by Punjab Act 53 of 1953, Section 2(c).]

may, on application to it being made within six months, from such date by auditor, through the Board recover the amount due as if it were an arrear of land revenue.]

123.

Budget of committees.

(1)

Every Committee shall submit each year to the Board at such time as may be prescribed an estimate of the income and expenditure for the ensuing financial year of the gurdwara or gurdwaras under its management :

[Provided that nothing herein shall apply to a Committee whose gross annual income is less than two thousand rupees.]

[Added by Punjab Act 1 of 1959, Section 41.]

(2)

The Board shall scrutinise every estimate submitted in accordance with the provisions of sub-section (1), and if it finds that the estimate provides for expenditure not authorised by this Act, the Board shall direct the committee to modify or alter the estimate within a reasonable time in such manner as the Board may deem necessary, and if the committee does not within the time stated comply with the direction, the Board shall apply to the Commission to pass an order calling upon the committee to make such notification or alteration, and the Commission may, after making such enquiry as may in its opinion be necessary, pass any order that it considers just and proper.

(3)

If the Board finds that an estimate submitted to it is not in accordance with a scheme of administration settled under the provisions of this Act for the gurdwara to which the estimate relates the Board may direct the committee to modify or alter the estimate within a reasonable time in such manner as the Board may deem necessary, and if the committee does not within the time stated comply with the direction, the Board may apply to the Commission to pass an order calling upon the committee to make such modification or alteration and the Commission may, after making such enquiry as may in its opinion be necessary, pass any order that it considers just and proper.

(4)

Nothing in this section shall apply to the committee constituted under the provisions [* * * *]

[The words brackets and figure [of sub-section (1)] omitted by Punjab Act 11 of 1944, Section 41.]

of section 85.

124.

Recovery of contributions.

(1)

The contributions payable under the provisions of section 107 shall be paid by the committee of a gurdwara after such notice and in such manner as may be prescribed.

(2)

If a committee fails after due notice to pay any sum payable by it under the provisions of sub-section (1), the Commission shall on application being made to it by the Board in this behalf call upon the committee to show cause why it should not be ordered to pay such sum, and may after hearing such member of the committee as may be deputed by the committee for this purpose pass an order directing the committee to pay the sum found payable either in a lump sum or by instalments, as it deems fit.

Chapter X

Powers And Duties Of The Board

125.

Powers and duties of the Board generally.

- It shall be the duty of the Board to ensure that every committee deals with the property and income of the gurdwara or gurdwaras managed by it, in accordance with the provisions of this Act, and for the fulfilment of this duty and subject to the provisions of and in addition to the powers conferred upon the Board by this Act, the [control, direction and]

[Inserted by Punjab Act 11 of 1944, Section 42.]

general superintendence over all committees appointed under the provisions of this Act shall vest in the Board.

126.

[* * * *]

[Section 126 omitted by Punjab Act No. 1 of 1959, Section 42.]

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127.

Board may hold and administer trusts. -

It shall be competent for the Board to hold and administer trust funds for purposes of a religious, charitable [educational or industrial nature]

[Substituted for the words 'or educational nature' by Punjab Act 11 of 1944, Section 43.]

whether such funds are derived from allotments duly made by a committee out of the surplus funds or income of a gurdwara under its management or from donations, or contributions or endowments made direct to the Board for such purposes.

[127-A. Collection of dues payable to notified Sikh Gurdwaras left in Pakistan. - (1) Notwithstanding anything contained in any other law for the time being in force or in this Act or in any administrative scheme, rules or bye-laws framed under the Act, the Board shall be the sole authority to receive, collect, realize and take possession from the Government Treasuries, Banks, Courts, Post Offices, wheresoever situated or from Custodian, Evacuee Property, [Punjab]

[Section 127-A added by East Punjab Act 32 of 1949, Section 7.]

, or any person, member or office-bearer of any local committee or Gurdwara Management Committee of any notified Sikh Gurdwara [in the territory in Pakistan known as Punjab]

[Substituted for the words, "The West Punjab" by the Adaptation of Laws (Third Amendment) Order of 1951.]

in possession of or against whom any kind of property or sums or dues recoverable by or payable to any notified Sikh Gurdwara left in the territory now known as Pakistan are still outstanding.]

(2)

The payment made to the Board in pursuance of sub-section (1) shall constitute a valid discharge of the liabilities of the person or persons aforesaid.

(3)

This section shall have retrospective effect as from the 15th day of August, 1947.]

[127-B. (1) Notwithstanding any other provision of this Act, any sum of money belonging to any notified Sikh Gurdwara left in the territory now known as Pakistan and deposited with or received by the Board in pursuance of the provisions of Section 127-A on behalf of such Gurdwara shall be spent by the Board in the first place for the discharge of obligations legally incurred in connection with such Gurdwara, for the payment of allowances or salaries of the dependents, officers and servants connected with it and for its maintenance and improvement.

(2)

When after providing for the purposes specified in sub-section (1), there remains or appears likely to remain any surplus sum, or any portion of the deposit is not required for such purposes, it may be used for such religious, charitable, educational or industrial purposes under the control and management of the Board or by appointment of special committees or trusts elected by a majority of 3/4 of the Members of the Board in a general meeting as the Board, in a general meeting, may determine]

[New Section 127-B inserted by Punjab Act 27 of 1953, section 3.]

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128.

Control by Board over executive committee.

- The Board in general meeting may at any time call upon its the Executive Committee to report upon any matter within the jurisdiction of the Board and may require the Executive Committee to take any such action as lies under the provisions of this Act within the powers of the Board.

129.

What matters may be discussed by Board in general meeting.

- The Board in any meeting may consider and discuss any matter with which it has power under this Act to deal and any matter directly connected with the Sikh religion, but shall not consider or discuss, or pass any resolution or order upon, any other matter.

130.

Settling of schemes of administration.

(1)

When at any time the committee or the Board is of opinion that for the proper administration of the property, endowments, funds and income of a Notified Sikh Gurdwara a scheme should be settled, the Board and the committee shall consult together and if they agree upon a scheme, the scheme shall be described in writing and the committee shall give effect thereto.

(2)

If at such consultation the committee and the Board do not agree upon a scheme, the committee or the Board may apply to the Commission and the Commission, after hearing such members of the committee and of the Board, respectively, as may be deputed for this purpose by the committee and the Board, respectively, and any such other persons as it may consider proper to hear, may itself settle such scheme as it considers just and proper and pass an order giving effect thereto.

(3)

When at any time the committee and the Board, after consultation together, are of opinion that a scheme settled under the provisions of sub-section (1) or sub-section (2) should, in the interests of the proper administration of the property, endowments, funds and income of the gurdwara, be set aside or modified, and the committee and the Board are in agreement in respect of the matter, the decision of the Board and the committee shall be recorded and effect thereto given by the committee.

(4)

If the committee or the Board is of opinion that in the interests of the proper administration of the property, endowments, funds or income of a Notified Sikh Gurdwara a scheme settled under the provisions of sub-section (1) or sub-section (2) should be set aside or modified, and the Board and the Committee are not in agreement upon the matter, the committee or Board may apply to the Commission to have the scheme set aside or modified as desired, and the Commission, after hearing such members of the committee and of the Board, respectively, as may be deputed for this purpose by the committee and the Board, respectively, and any such other persons as it may consider proper to hear, may itself set aside or settle such scheme as it considers just and proper and pass an order giving effect thereto.

(5)

[Scheme framed under this section shall have force of law.]

[Added by Punjab Act 1 of 1959, Section 43.]

131.

Exclusion of Board acting as committee from operation of section 130.

- Nothing contained in section 130 shall apply to the committee constituted under the provisions [***]

[The words, brackets and figure [of sub-section (1)] omitted by Punjab Act 11 of 1944, Section 44.]

of section 85.

132.

Power of Board to make bye-laws.

(1)

The Board may in general meeting make bye-laws, not inconsistent with this Act, regulating its procedure, and the fees to be levied under the provisions of sub-section (8) of Section 137, provided that the Board shall not, without the previous sanction of the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government, make any bye-law -

(a)

prescribing the form in which the budgets of the Board and of committees shall be presented;

(b)

providing for the custody and investment of the funds of the Board and prescribing the procedure by which sanction of the Board may be accorded to the deposits of surplus funds in specified banks;

(c)

prescribing the qualification of candidates for membership of the Board and committees;

and provided further that no bye-law falling within the purview of clause (c) shall impose any disqualification upon a Sikh only because he is a Sahjdhari Sikh.

(2)

All bye-laws requiring the previous sanction of the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government under the provisions of sub-section (1) shall when made be published in the [Official Gazette.]

[Substituted for the word "Gazette" by the Government of India (Adaptation of Indian Laws) Order, 1937.]

(3)

Bye-laws framed under this section shall have force of law.]

[Added by Punjab Act 1 of 1959, Section 44.]

Chapter XI

Powers And Duties Of Committees

133.

General powers of committees.

- Subject to the provisions of this Act, a committee shall have full powers of control over the office-holders and dependents of, and all properties and income of whatever description belonging to the gurdwara or gurdwaras under its management and of enforcing the proper observance of all ceremonies and religious observances in connection with such gurdwara or gurdwaras and of taking all such measures as may be necessary to ensure the proper management of the gurdwara or gurdwaras and the efficient administration of the property, income and endowments thereof.

134.

Powers of committee to dismiss office-holders.

- The committee may suspend or dismiss any office-holder, provided that it shall not dismiss a hereditary office-holder or a minister unless it finds that such office-holder or minister-

(a)

makes persistent default in the submission of budgets, accounts, reports or returns which it is his duty to submit, or

(b)

wilfully disobeys lawful orders issued by the committee, or

(c)

is guilty of any malfeasance, misfeasance, breach of trust or neglect of duty in respect of a trust, or

(d)

has misappropriated or improperly dealt with the properties of the gurdwara, or

(e)

is of unsound mind or physically unfit to discharge the functions of his office, or

(f)

is guilty of misconduct of such a character as to render him morally unfit for his office, or

(g)

fails persistently to perform his duties in connection with the management or performance of public worship or the management or performance of any rituals and ceremonies in accordance with the teachings of Sri Guru Granth Sahib, or

(h)

has ceased to be a Sikh :

[Provided that nothing contained in the provisions of this section shall debar the committee from prescribing with the approval of the Board the maximum period of service or age limit for its employees, including the ministers of the Gurdwaras under its management. After the prescribed period of service or age limit, the employees, including the ministers shall have to retire.]

[Added by Punjab Act 11 of 1944, Section 45.]

135.

Procedure when hereditary office-holder or minister is dismissed.

(1)

When the dismissal of a hereditary office-holder or of a minister is ordered, the order shall, except when it is based on facts or conclusions established at a judicial trial or when such office-holder or minister is absconding, be preceded by a recorded enquiry, and at such enquiry a definite charge in writing shall be framed in respect of each offence and explained to such office-holder or minister; the evidence in support of it and any evidence which he may adduce in his defence shall be recorded in his presence and his defence shall be taken down in writing, and on each of the charges framed a finding shall be recorded.

(2)

A committee may suspend a hereditary office-holder or a minister pending an enquiry into the charges framed against him.

(3)

Any hereditary office-holder who has been suspended or dismissed may, within three months of the date of the order of suspension or dismissal, as the case may be, appeal either to the Board or to the Commission as he may elect; if he elects to appeal to the Board, the order of the Board shall be final, and if he elects to appeal to the Commission, a further appeal shall lie to the High Court from the order of the Commission, provided that such appeal shall be made within ninety days of the date of the order.

(4)

Any minister other than a hereditary office-holder who has been suspended or dismissed, may within ninety days of the date of the order of suspension or dismissal, as the case may be, appeal to the Board and the order of the Board shall be final.

(5)

When no appeal is preferred against an order of a committee suspending or dismissing a hereditary office-holder or a minister, as the case may be, such order shall be final.

(6)

If, in the opinion of the Board, a hereditary office-holder or a minister of a Notified Sikh Gurdwara may be dismissed in accordance with the provisions of section 134, the Board may move the committee of such gurdwara to dismiss him, and if the committee does not within one month of being so moved dismiss such office-holder or minister, the Board may apply to the Commission to order his removal, and if the Commission finds that such office-holder or minister may be so dismissed, it may order his dismissal.

(7)

When an application has been made to the Commission under the provisions of sub-section (6), the Commission may suspend from office, pending its decision, the person against whom the application has been made.

(8)

Any hereditary office-holder dismissed under the provisions of sub-section (6), may, within ninety days of the date of the order of dismissal, appeal to the High Court.

(9)

Notwithstanding anything contained in sub-section (3) or sub-section (4), when the Board acting as a committee under the provisions [* * *]

[The words brackets and figure [of sub-section (1)] omitted by Punjab Act 11 of 1944, Section 46.]

of section 85 orders the suspension or dismissal of a hereditary office-holder, an appeal from such order shall lie only to the Commission with a further appeal to the High Court as provided in sub-section (3) and when the Board acting as such committee orders the suspension or dismissal of a minister other than a hereditary office-holder the order of the Board shall be final; and nothing contained in sub-sections (6), (7) or (8) shall apply to the Board acting as such committee.

136.

Appointment of ministers and office-holders.

(1)

If after the commencement of this Act any vacancy occurs in an office connected with a Notified Sikh Gurdwara, whether by reason of the death, dismissal or resignation of the office-holder or for any other reason, the committee of the gurdwara may appoint any person who, in its opinion, is qualified for the office to fill the vacancy : provided that if the last holder of the office was a hereditary office-holder who had not before the vacancy occurred received compensation under the provisions of section 20, and there is a presumptive successor of such last office-holder who desires to be appointed and has not received compensation under the provisions of section 20, the committee shall appoint such presumptive successor unless, in its opinion, he has not been properly ordained or his moral character is such as to render him unsuitable or his education has not been sufficient to render him fit for appointment.

(2)

If any presumptive successor claims to be appointed to fill a vacancy in accordance with the provisions of sub-section (1) and the committee rejects his claim, he may, unless the committee is the Board acting as a committee under the provisions [* * *]

[The words, brackets and figure [of sub-section (1)] omitted by Punjab Act 11 of 1944, Section 47.]

of section 85, within thirty days of the date of such rejection, appeal to the Board and the decision of the Board shall be final.

137.

Registers to be kept for gurdwaras.

(1)

The Committee of every Notified Sikh Gurdwara shall, as soon as may be, prepare registers in which shall be entered-

(a)

the names of past and present ministers of the gurdwara so far as these are known;

(b)

particulars of all immovable properties of the gurdwara and the documents, if any, relating thereto;

(c)

particulars of the scheme of administration, if any;

(d)

the names of all offices connected with the gurdwaras to which any salary, emoluments or perquisite is attached and the nature, period and conditions of service in each case;

(e)

the jewells, gold, silver, precious stones, vessels and utensils and other moveable property belonging to the gurdwara with their estimated value; and

(f)

such other particulars as the Board may direct.

(2)

The [registers]

[Substituted for the words 'register' and 'through' by Punjab Act 53 of 1953.]

shall be submitted [by]

[Substituted for the words 'register and [through' by Punjab Act 53 of 1953.]

the committee to the Board within such period after the commencement of this Act as the Board may direct.

(3)

The Board, after checking them, may direct that the registers be corrected in such manner as appears to be necessary.

(4)

The registers as approved by the Board shall be kept by the committee of the gurdwara to which they relate; and copies thereof shall be kept by the Board.

(5)

The committee shall cause the entries in the registers to be scrutinised annually, and shall submit to the Board for its approval a verified statement showing the alterations, omissions or additions required therein.

(6)

The Board may, after checking the statement, direct such alterations, omissions or additions to be made in the registers as it finds to be necessary.

(7)

A copy of every order passed under the provisions of sub-section (3) or sub-section (6) shall be communicated to the committee and the committee shall carry out the alterations, omissions or additions ordered by the Board in the registers.

(8)

The President of the Board or any servant authorised by him on this behalf or the president of the committee may grant copies of the registers or of any entries therein on payment of such fees as the Board may by bye-law prescribe; such copies shall be certified by the president of the Board or committee, as the case may be, in the manner provided in section 76 of the Indian Evidence Act, 1872 (

1 of 1872

).

(9)

Nothing contained in sub-section (2), (3), (4), (6) or (7) or in sub-section (5) with the exception of the provisions for the annual scrutiny of entries in registers shall apply to the Committee constituted under the provisions [***]

[The words brackets and figure [of sub-section (1)] omitted by Punjab Act 11 of 1944, Section 46.]

of section 85.

[138. Alienation of immovable trust property. - No exchange, sale, mortgage or other alienation of immovable property belonging to a Notified Sikh Gurdwara be valid unless it is sanctioned by the Committee of the Gurdwara and by the Board, provided that the sanction of the Board shall not be necessary in the case of a lease of any such property for a term which does not exceed the remaining term of the existing Committee by a period of more than one year]
[Substituted for the old section by Punjab Act 11 of 1944, section 49.]

139.

Power of committee to make regulations.

- A committee of a Notified Sikh Gurdwara may make regulations not inconsistent with the provisions of this Act or with any rules or bye-laws made thereunder to regulate its procedure, provided that without the previous sanction of the Board no regulation shall be made-

(i)

authorising by name or office any person to receive or sign acknowledgements of the receipt of any money on behalf of the committee, or

(ii)

prescribing the form in which accounts, returns and reports relating to the management of a Gurdwara shall be maintained or submitted.

140.

Power of committee to make regulations reoffering at Sikh Gurdwara.

(1)

The Committee of a Notified Sikh Gurdwara may, from time to time, make regulations for the purpose of determining what portion of the offering made at, or in connection with such Gurdwaras shall be deemed to be the property of the Gurdwara and regulating the division of such offerings or any portion of them between the various office-holders of such Gurdwara.

(2)

If no regulations have been made by a committee under the provisions of sub-section (1), all offerings made at, or in connection with, a Notified Sikh Gurdwara shall be deemed to be the property of such Gurdwara.

Chapter XII

Miscellaneous

141.

Salaries of office-holders to be their property.

- The salary and allowances of a minister or other office-holder of a Notified Sikh Gurdwara and any property acquired by him out of his salary and allowances shall be the property of such minister or office-holder.

[142. Right of interested persons to complain to commission in respect of misfeasance, etc. - (1) Notwithstanding anything contained in section 92 of the Code of Civil Procedure, 1908 (5 of 1908), or in the Specific Relief Act, 1877, any person having interest in a Notified Sikh Gurdwara may, without joining any of the other persons interested therein, make an application to the Commission, against the Board, the Executive Committee of the Board, or the Committee [* * * *]

[Substituted for the old section by Punjab Act 11 of 1944, section 50.]

, or against any member or past member of the Board, of the Executive Committee or of the Committee [* * * *]

[Words [or local committee] and [or of local committee] omitted by Punjab Act 53 of 1953, Section 26.]

, or against any office-holder or past office-holder of the Gurdwara or against any employee past or present of the Board or Gurdwara in respect of any alleged malfeasance, misfeasance, breach of trust, neglect of duty, abuse of powers conferred by this Act or any alleged expenditure on a purpose not authorised by this Act and the Commission, if it finds any such malfeasance, misfeasance, breach of trust, neglect of duty, abuse of powers or expenditure proved, may consistently with the provisions of this Act and of any other law or enactment in force for the time being direct any specific act to be done or forborne for the purpose of remedying the same and may award damages or costs against the person responsible for the same, and may order the removal of any office-holder or member of the Board, Executive Committee, or Committee [* * *]

[Words [or local committee] and [or of local committee] omitted by Punjab Act 53 of 1953, Section 26.]

, responsible for the same and may also disqualify any member of the Board, Executive Committee, or Committee [* *]

*)

[Words [or local committee] and [or of local committee] omitted by Punjab Act 53 of 1953, Section 26.]

, thus removed from such membership for a period not exceeding five years from the date of such removal:

[Provided that no such application shall be entertained by the Commission, if it is made more than six years after the date of the act or omission from which the right to make an application under this sub-section accrues and, in the case of an application against a member of the Board, the Executive Committee of the Board or the Committee, if it is made after such period or after six years of the date of his ceasing to be a member, whichever is later.]

[Proviso added by Punjab Act No. 1 of 1959, Section 45.]

(2)

The Board may make a similar application to the Commission which may, in like manner, dispose of it.

(3)

The Board or any person aggrieved by an order passed by the Commission under the provisions of sub-section (1) or sub-section (2) may, within ninety days of the orders, appeal to the High Court.]

143.

Notice of application to be given. -

No application shall be made under the provisions of section 142 against the Board, [the Executive Committee of the Board]

[Inserted by Punjab Act 1 of 1959, Section 46.]

, or a committee until the expiry of two months, after notice in writing has been delivered to the Board or to the Committee, as the case may be, stating the cause of action, the name, description and place of residence of the applicant and the relief which he claims, and the application shall contain a statement that such notice has been delivered.

144.

Government not to interfere with gurdwaras except as provided by this Act or any other Act.

- Save as provided in this or any other Act, it shall not be lawful for the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government or for any executive officer of the [State]

[Substituted for the word [Provincial] by the Adaptation of Laws Order, 1950.]

Government in his official capacity to undertake or assume the superintendence of any land or other property granted for the support of, or otherwise belonging to, any Notified Sikh Gurdwara, to take any part in the management or appropriation of any endowment made for its maintenance, or to nominate or appoint any office-holder of, or to be concerned in any way with, such gurdwara.

144.

-A. Power to denotify or exempt non-historical Gurdwaras. - The State Government may, on the recommendation of the Board made by a resolution passed by not less than three-fifths of the total number of members of the Board in its general meeting, denotify or exempt any non-historical Gurdwara from the operation of all or any of the provisions of this Act :

Provided that the Board shall not make such recommendation unless it is satisfied that alternate arrangement for the maintenance of such Gurdwara has been made.]

145.

Act of Board or committee not to be invalidated by informality.

- No act of the Board, or its executive Committee or of a committee shall be held invalid in any judicial proceeding on the ground of any defect in the constitution of the Board, Executive Committee or Committee, as the case may be, or on account of any irregularity in the procedure of the Board, Executive Committee or Committee, as the case may be, unless the defect or irregularity has occasioned a failure of justice.

146.

Power of State Government to make rules.

(1)

The [Central Government]

[Substituted for [State Government] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

may make rules not inconsistent with the Act to carry out all or any of the purposes of the Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, the [Central Government]
[Substituted for [State Government] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]
may make rules for -

(i)

the registration of electors;

(ii)

the nomination of candidates, the times of elections to be held under the provisions of this Act, the mode of recording and counting votes and the declaration of the results of such elections;

(iii)

the conduct of enquiries and the decision of disputes relating to elections;

(iv)

the definition of the practices at elections held under the provisions of this Act which are to be deemed to be corrupt;

(v)

the investigation of allegations of corrupt practices at such elections;

(vi)

making void the election of any person proved to have been guilty of a corrupt practice or to have connived at or abetted the commission of, a corrupt practice or whose agent has been so proved guilty, or the result of whose election has been materially affected by the breach of any law or rule for the time being in force;

(vii)

rendering incapable of office, either permanently or for a term of years, any person who may have been proved guilty as aforesaid of a corrupt practice or of conniving at or abetting the same;

(viii)

prescribing the authority by which questions relating to the matters referred to in clause (i), (ii), (iii), (v), (vi) or (vii) shall be determined;

(ix)

the method by which the income of a gurdwara shall be calculated for the purpose of fixing the annual contribution described in section 107; and

(x)

the authority to whom, and the manner in which petitions, applications and records of suits or proceedings which may or should under the provisions of this Act be presented, made or forwarded, as the case may be, are to be presented, made or forwarded when a tribunal or the Commission has not been constituted or is not sitting.

(3)

[Every rule made by the Central Government under this Section shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under the rule.]

[Inserted vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

147.

Power of the State Government to invest with judicial powers officers appointed to enquire into conduct of elections.

- The [Central Government]

[Substituted for [State Government] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

may invest any person or persons authorised by it to hold an enquiry into the conduct of, or into allegations of corrupt practices with all or any of the powers conferred upon [the High Court]

[Substituted for [the Tribunal appointed] vide MOH Notification No. S.O.63(E), dated 3.2.1978.]

to hold an enquiry into an election by the provisions of Chapter III of the Representation of the People Act, 1951]

[Section 144-A inserted by Punjab Act 1 of 1959, section 47.]

and may prescribe the procedure to be followed, and provide for the execution of any order as to costs passed by such

person or persons in such enquiry.

148.

Language of the Commission.

- The language of the Commission shall be such as the Commission may, from time to time, determine.

[148-A. Repeal. - The ijlas-i-khas order No. 52, dated the 8th November, 1946, relating to the appointment of Interim Gurdwara Board, Patiala, as in force in the extended territories, is hereby repealed and as from the commencement of the Amending Act, the Interim Gurdwara Board, Patiala, shall cease to function.]

[Inserted by Punjab Act No. 1 of 1959, Section 18.]

Chapter XII

A]

[Chapter XII-A added by Punjab Act 1 of 1959, Section 49.]

Temporary And Transitional Provisions

148.

-B. Additional Members of the Board constituted under section 43 and the Executive Committee constituted under Section 62. -

(1)

As from the commencement of the Amending Act, in addition to the members of the Board constituted under section 43 and till the next election of the new Board under section 43-A, -

(a)

every person in the extended territories who immediately before the commencement of the Amending Act, is a member of the Interim Gurdwara Board, Patiala, constituted by Punjab Government, Home Department, Notification No. 18-Gurdwaras, dated the 10th January, 1958, shall be deemed to be a member of the Board, constituted under section 43; and

(b)

thirty-five Sikhs including six Sikhs belonging to the Scheduled Castes residents in the extended territories to be divided among different districts thereof in proportion to the Sikh population of each district in the prescribed manner, who shall, within forty days of the commencement of the Amending Act, be elected by the persons specified in sub-section (2) in accordance with the rules made in this behalf by the State Government shall become the members of the Board from the date specified in sub-section (3).

(2)

The thirty-five persons referred to in clause (b) to sub-section (1) shall be elected by -

(i)

the persons who are deemed to be the members of the Board under clause (a) of sub-section (1);

(ii)

the twelve members of the Board being residents of Pepsu as are referred to in clause (iii) of sub-section (1) of Section 43;

(iii)

the sitting Sikh members of Parliament and the two Houses of State Legislature returned from any constituency or part thereof from the extended territories;

(iv)

the Sikh Members of Municipal Committees in the extended territories;

(v)

the Presidents or Chairmen of such Singh Sabhas and the Managers or Secretaries of such Sikh educational institutions or Sikh religious organisations as are registered on or before the 1st December, 1958, in the extended territories; and

(vi)

the Sikh Sarpanches and Sikh Nayay Pardhans of Nagar Panchayats and Panchayati Adalats, respectively :

Provided that the electors under clauses (iii), (iv), (v) and (vi) are not disqualified under the proviso to section 49 of the Act.

(3)

The prescribed authority shall, as soon as possible, intimate to the State Government the names of persons elected under clause (b) of sub-section (1) for being notified in the Official Gazette and the date of publication of the notification

shall be deemed to be the date from which each person shall become a member of the Board.

(4)

As soon as may be after the election of members has been notified under sub-section (3), a meeting of the members of the Board belonging to the extended territories shall be called by the Deputy Commissioner, Patiala, at Patiala, to elect four persons to be members of the Executive Committee of the Board in accordance with the provisions of section 62 and, notwithstanding anything to the contrary contained in that section, the persons so elected shall be members of the Executive Committee of the Board till the next annual election of the office-bearers and the Executive Committee of the Board.

(5)

For carrying out the purposes of this section, the State Government may by notification make rules, and such rules may, among other things, provide for -

(a)

the delimitation of constituencies for holding the election and allocation of seats to each constituency in a district; and

(b)

all or any of the matters specified in sub-section (2) of Section 146 in so far as they relate to or are connected with, the election under this Section.

148.

-C. Provisions relating to the existing local committee functioning under the Interim Gurdwara Board, Patiala.

- Notwithstanding anything contained in this Act, every local committee in the extended territories functioning for the management of one or more Gurdwaras under the control of the Interim Gurdwara Board, Patiala, immediately before the commencement of the Amending Act, shall, till the constitution of the new Committees, be deemed to be a Committee for such Gurdwaras under this Act.

148.

-D. Provisions as to employees of the Interim Gurdwara Board, Patiala, and local committees functioning under it.

- Every person in the extended territories who, immediately before the commencement of the Amending Act, is an employee of the Interim Gurdwara Board, Patiala, or of a local Committee functioning under such Board, shall, on and from such commencement, be transferred to and become a servant of the Board or of the Committee, as the case may be, and shall hold office on the same terms and conditions of service as he would have held if the Amending Act had not been passed and shall continue to do so unless and until and conditions are duly altered by the Board or the Committee, as the case may be.

148.

-E. Special provisions regarding the assets and liabilities of Interim Gurdwara Board, Patiala.

- As from the commencement of the Amending Act,-

(a)

all lands and buildings (together with all interests of whatsoever nature or kind therein) belonging to or owned by the Interim Gurdwara Board, Patiala, immediately before such commencement shall pass to and vest in the Board;

(b)

all assets, including stores, articles, and movable properties belonging to the Interim Gurdwara Board, Patiala, immediately before such commencement and utilized for or in connection with the Interim Gurdwara Board, Patiala, shall pass to and vest in the Board;

(c)

all debts, obligations and liabilities incurred, all contracts entered into and all matters and things engaged to be done by, with or for the Interim Gurdwara Board, Patiala, immediately before such commencement, shall be deemed to have been incurred, entered into, engaged to be done by, with or for the Board;

(d)

all rents and other sums of money due to the Interim Gurdwara Board, Patiala, immediately before such commencement shall be deemed to be due to the Board;

(e)

all suits, prosecutions and other legal proceedings instituted or which might have been instituted by or against the Interim Gurdwara Board, Patiala, immediately before such commencement may be continued or instituted by or against the Board.

148.

-F. Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act in the extended territories, the State Government may, by order as occasion requires, do anything, which appears to it to be necessary for the purpose of removing the difficulty.

[Chapter XIII]

[Chapter XIII added by Punjab Act 25 of 1954, Section 3.]

Electoral Offences

149.

Prohibition of public meetings on the Election day.

(1)

No person shall convene, hold or attend any public meeting within any constituency on the date or dates on which a poll is taken for an election in that constituency.

(2)

Any person who contravenes the provisions of sub-section (1) shall be punishable with fine which may extend to two hundred and fifty rupees.

150.

Disturbances at election meetings.

(1)

Any person who at a public meeting to which this section applies acts, or incites others to act, in a disorderly manner for the purposes of preventing the transaction of the business for which the meeting was called together, shall be punishable with fine which may extend to two hundred and fifty rupees.

(2)

This section applies to any public meeting of a political character held in any constituency between the date of the issue of a notice under the Sikh Gurdwaras Board or Committee Election Rules framed under this Act calling upon the constituency to elect a member or members and the date on which such election is held.

(3)

If any police officer reasonably suspects any person of committing an offence under sub-section (1) he may, if requested so to do by the chairman of the meeting, require that person to declare to him immediately his name and address and, if that person refuses or fails so to declare his name and address or if the police officer reasonably suspects him of giving a false name or address, the police officer may arrest him without warrant.

151.

Maintenance of secrecy of voting.

(1)

Every officer, clerk, agent or other person who performs any duty in connection with the recording or counting of votes at an election shall maintain, and aid in maintaining, the secrecy of the voting and shall not (except for some purpose authorised by or under any law) communicate to any person any information calculated to violate such secrecy.

(2)

Any person who contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to three months or with fine or with both.

152.

Officers, etc., at elections not to act for candidates or to influence voting.

(1)

No person who is a Returning Officer or a presiding or polling officer at an election, or an officer or clerk appointed by the Returning Officer or the presiding officer to perform any duty in connection with an election shall in the conduct or the management of the election do any act (other than the giving of vote) for the furtherance of the prospects of the election of a candidate.

(2)

No such person as aforesaid, and no member of a police force, shall endeavour:-

(a)

to persuade any person to give his vote at an election; or

(b)
to dissuade any person from giving his vote at an election; or

(c)
to influence the voting of any person at an election in the any manner.

(3)
Any person who contravenes the provisions of sub-section (1) or sub-section (2) shall be punishable with imprisonment which may extend to six months or with fine or with both.

153.

Prohibition of canvassing in or near polling stations.

(1)
No person shall, on the date or dates on which a poll is taken at any polling station, commit any of the following acts within the polling station or in any public or private place within a distance of one hundred yards of the polling station, namely :-

(a)
canvassing for votes; or

(b)
soliciting the vote of any elector; or

(c)
persuading any elector not to vote for any particular candidate; or

(d)
persuading any elector not to vote at the election; or

(e)
exhibiting any notice or sign (other than an official notice) relating to the election.

(2)
Any person who contravenes the provisions of sub-section (1) shall be punishable with fine which may extend to two hundred and fifty rupees.

(3)
An offence punishable under this section shall be cognizable.

154.

Penalty for disorderly conduct in or near polling station.

(1)
No person shall, on the date or dates on which a poll is taken at any polling station,-

(a)
use or operate within or at the entrance of the polling station, or in any public or private place in the neighbourhood thereof, any apparatus for amplifying or reproducing the human voice, such as a megaphone or a loudspeaker, or

(b)
shout, or otherwise act in a disorderly manner, within or at the entrance of the polling station or in any public or private place in the neighbourhood thereof so as to cause annoyance to any person visiting the polling station or the poll, or so as to interfere with the work of the officers and other persons on duty at the polling station.

(2)
Any person who contravenes, or wilfully aids or abets the contravention of, the provisions of sub-section (1) shall be punishable with imprisonment which may extend to three months or with fine or with both.

(3)
If the presiding officer of a polling station has reasons to believe that any person is committing or has committed an offence punishable under this section, he may direct any police officer to arrest such person and thereupon the police officer shall arrest him.

(4)
Any police officer may take such steps and use such force, as may be reasonably necessary for preventing any contravention of the provisions of sub-section (1), and may seize any apparatus used for such contravention.

155.

Penalty for misconduct at the polling station.

(1)

Any person who during the hours fixed for the poll at any polling station misconducts himself or fails to obey the lawful directions of the presiding officer may be removed from the polling station by the presiding officer or by any police officer on duty or by any person authorised in this behalf by such presiding officer.

(2)

The powers conferred by sub-section (1) shall be exercised so as to prevent any elector who is otherwise entitled to vote at a polling station from having an opportunity of voting at the election.

(3)

If any person who has been so removed from a polling station re-enters the polling station without the permission of the presiding officer, he shall be punishable with imprisonment for a term which may extend to three months or with fine or with both.

(4)

An offence punishable under sub-section (3) shall be cognizable.

156.

Penalty for illegal hiring or procuring of conveyances at elections.

- If any person is guilty of any such corrupt practice in respect of illegal hiring or procuring of conveyances as is specified in the Sikh Gurdwaras Election Enquiries Rules, framed under this Act at or in connection with an election, he shall be punishable with fine which may extend to two hundred and fifty rupees.

157.

Breaches of official duty in connection with elections.

(1)

If any person to whom this section applies is without reasonable cause guilty of any act or omission in breach of his official duty, he shall be punishable with fine which may extend to five hundred rupees.

(2)

No suit or other legal proceedings shall lie against any such person for damages in respect of any such act or omission as aforesaid.

(3)

The persons to whom this section applies are the Deputy Commissioner, Returning Officer, presiding officers, polling officers and any other person appointed to perform any duty in connection with the preparation of an electoral roll, the receipt of nominations or withdrawal of candidatures, or the recording or counting of votes at an election; and the expression "official duty" shall for the purposes of this section be construed accordingly, but shall not include duties imposed otherwise than by or under the Sikh Gurdwaras Board or Committee Election Rules framed under this Act.

158.

Removal of ballot papers from polling station to be an offence.

(1)

Any person who at any election fraudulently takes, or attempts to take, a ballot-paper out of a polling station, or wilfully aids or abets the doing of any such act, shall be punishable with imprisonment for a term which may extend to one year or with fine which may extend to five hundred rupees or with both.

(2)

If the presiding officer of a polling station has reasons to believe that any person is committing or has committed an offence punishable under sub-section (1), such officer may, before such person leaves the polling station, arrest or direct a police officer to arrest such person and may search such person or cause him to be searched by a police officer :

Provided that when it is necessary to cause a woman to be searched, the search shall be made by another woman with strict regard to decency.

(3)

Any ballot-paper found upon the person arrested on search shall be made over for safe custody to a police officer by the presiding officer, or when the search is made by a police officer, shall be kept by such officer in safe custody.

(4)

Any offence punishable under sub-section (1) shall be cognizable.

159.

Other offences and penalties therefor.

(1)

Any person shall be guilty of an electoral offence if at any election he -

(a)

fraudulently defaces or fraudulently destroys any nomination paper; or

(b)

fraudulently defaces, destroys or removes any list, notice or other document affixed by or under the authority of a Returning Officer, or

(c)

fraudulently defaces or fraudulently destroys any ballot-paper or the official mark, if any, on any ballot-paper or any declaration of identity or official envelope used in connection with voting by special ballot-paper; or

(d)

without due authority supplies any ballot-paper to any person; or

(e)

fraudulently puts into any ballot-box anything other than the ballot-paper which he is authorised by law to put in; or

(f)

without due authority destroys, takes, opens or otherwise interferes with any ballot-box or ballot-paper then in use for the purposes of the election; or

(g)

fraudulently or without due authority, as the case may be, attempts to do any of the foregoing acts or wilfully aids or abets the doing of any such acts.

(2)

Any person guilty of an electoral offence under this section shall -

(a)

if he is a Returning Officer or a presiding officer at a polling station or any other officer or clerk employed on official duty in connection with the election, be punishable with imprisonment for a term which may extend to two years or with fine or with both;

(b)

if he is any other person, be punishable with imprisonment for a term which may extend to two years or with fine or with both;

(3)

For the purposes of this section, a person shall be deemed to be on official duty if his duty is to take part in the conduct of an election or part of an election including the counting of votes or to be responsible after an election for the used ballot-papers and other documents in connection with such election, but the expression "official duty" shall not include any duty imposed otherwise than by or under the Sikh Gurdwaras Board or Committee Election Rules, framed under this Act.

(4)

An offence punishable under clause (b) of sub-section (2) shall be cognizable.

160.

Prosecution regarding certain offences.

(1)

If the Elections Commissioner has reason to believe that any offence punishable under section 152, or under section 157, or under clause (a) of sub-section (2) of Section 159 has been committed in reference to any election, it shall be the duty of the Elections Commissioner to cause such enquiries to be made and such prosecutions to be instituted as the circumstances of the case may appear to him to require.

(2)

No Court should take cognizance of any offence punishable under section 152 or under Section 157 or under clause (a) of sub-section (2) of section 159 unless there is a complaint made by or under authority from, the Election Commissioner.

161.

Amendment of Act V of 1898.

- For the purposes of elections under this Act, in the Code of Criminal Procedure, 1898 -

(a)

in

section 196, after the word and figures "section 127" the words, figures and letter "and section 171-F; so far as it relates to the offence of personation" shall be inserted ;

(b)

in Schedule II -

(i)

in the entry relating to section 171-F of the Indian Penal Code (Act XLV of 1860) from the paragraph in column 2 the words "and personation" shall be omitted;

(ii)

after the paragraph in column 2 of the said entry as so amended, the following paragraph shall be inserted, namely :-
"Personation at an election";

(iii)

in column 3, opposite the paragraph inserted by sub-clause (ii), the following paragraph shall be inserted, namely :-
"May arrest without warrant";

(iv)

in columns 4, 5, 6, 7 and 8 opposite the paragraph inserted by sub-clause (ii) the words "Ditto" shall be inserted :

(v)

in the entry relating to section 171-G of the Indian Penal Code, in column 3, for the word "Ditto" the words "shall not arrest without warrant" shall be substituted.

Schedule

(As amended by Punjab Acts 4 of 1926, 13 of 1926, I of 1927 and 1 of 1959.)

I

[Substituted for the words 'See Sections 3 of 90' by Punjab Act

10 of 1959

, Section 7.]

[(See Section 3)]

Serial No.

District

Tahsil

Revenue Estate

Name of Gurdwara.

1

2

3

4

5

[6]

[1-22]

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..

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23.

Amritsar

Kasur

Rattoki

...

[24-25]

- .
26.
Amritsar
Amritsar
Amritsar City
Shri Harmandir Sahib (Darbar Sahib).
27.
Amritsar
Amritsar
Amritsar City
Akal Takhat Sahib (Akal Bunga).
28.
Amritsar
Amritsar
Amritsar City
Baba Atal Sahib.
29.
Amritsar
Amritsar
Amritsar City
Kaulsar and Mail Kaulan da Asthan.
30.
Amritsar
Amritsar
Amritsar City
Ram Sar (Manji Sahib).
31.
Amritsar
Amritsar
Amritsar City
Bibeksar.
32.
Amritsar
Amritsar
Amritsar City
Tahli Sahib with Santokh Sar.
33.
Amritsar
Amritsar
Amritsar City
Churasti Atari.
34.
Amritsar
Amritsar
Amritsar City
Guru ke Maihl.
35.
Amritsar
Amritsar
Amritsar City
Lohgarh.

36.

Amritsar
Amritsar
Amritsar City
Thara Sahib.

37.

Amritsar
Amritsar
Amritsar City
Pipli Sahib.

38.

Amritsar
Amritsar
Amritsar City
Chhawani Nahangan (Agnitha Guru Naina Singh).

39.

Amritsar
Amritsar
Amritsar City
Shahid Ganj Baba Dip Singh Ji.

40.

Amritsar
Amritsar
Chabba
Sangrana Sahib.

41.

Amritsar
Amritsar
Chabba
Walla Sahib.

42.

Amritsar
Amritsar
Baba Bakala
Baba Bakala.

43.

Amritsar
Amritsar
Chabba
Chabba.

44.

Amritsar
Amritsar
Wadali Guru
Damdama Sahib.

45.

Amritsar
Amritsar
Wadali Guru
Chheharta Sahib.

46.

Amritsar
Amritsar
Main Randhawa
Udoke.
47.
Amritsar
Amritsar
Sultanwind
Damdama Sahib.
48.
Amritsar
Amritsar
Verka
Nanak Sar.
49.
Amritsar
Tarn Taran
Khara
Dukh Niwaran.
50.
Amritsar
Tarn Taran
Tarn Taran
Sri Darbar Sahib.
51.
Amritsar
Tarn Taran
Naurangabad
Gurdwara Baba Wir Singh Ji.
52.
Amritsar
Tarn Taran
Khadur Sahib
Sri Darbar Sahib Khadur Sahib.
53.
Amritsar
Tarn Taran
Goindwal
Baoli Sahib.
54.
Amritsar
Tarn Taran
Chabhal Kalan
Bibi Wiro Ji Ka Asthan.
55.
Amritsar
Tarn Taran
Khan Chhabri
Chhabri Sahib.
56.
Amritsar

Tarn Taran
Sarhali Kalan
Chobacha Sahib.

57.

Amritsar
Tarn Taran
Chobhla
Chohla Sahib.

58.

Amritsar
Tarn Taran
Basarke
Basarke.

59.

Amritsar
Tarn Taran
Gaggo Buha
Gaggo Buha.

60.

Amritsar
Tarn Taran
Hoshiarnagar
Guru Sar Satlani.

61.

Amritsar
Tarn Taran
Thatha
Bir Sahib.

62.

Amritsar
Tarn Taran
Lohar
Dera Sahib.

63.

Amritsar
Ajnala
Ghokewali
Guru-ka-Bagh.

64.

Amritsar
Ajnala
Dalla
Dalla Kiralgarh.

65.

Amritsar
Ajnala
Barar
Barar Madoke.

66.

Amritsar
Ajnala

Ram Das

Ram Dass.

67.

Amritsar

Ajnala

Jandiala

Maihl Jandiala.

68.

Gurdaspur

Batala

Batala

Dera Sahib.

69.

Gurdaspur

Batala

Salho Chahl

Achal Sahib Gurdwara (excluding Shiwala Talab Kalan and Shiwala Bhandarian).

70.

Gurdaspur

Batala

Pakhoke Dera Nanak

Darbar Sahib, Dera Baba Nanak

71.

Gurdaspur

Batala

Talwara

Damdama Sahib.

72.

Gurdaspur

Batala

Pakhoke Dera Nanak

Chola Sahib (including Langar Mandar Chola Sahib).

73.

Gurdaspur

Batala

Teja Kalan

Teja.

74.

Gurdaspur

Batala

Othain

Othian.

75.

Gurdaspur

Gurdaspur

Fateh Nangal

Burj Sahib.

76.

Gurdaspur

Gurdaspur

Gurdaspur

Jhulna Mahal.

77.

Gurdaspur

Gurdaspur

Dhariwal

Gurdawara Dhariwal.

78.

Gurdaspur

Gurdaspur

Bhumbli

Bhumbli.

[79-80]

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81.

Gurdaspur

Pathankot

Bharat Lahri

Darbar Sahib Bharat.

[82-117]

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118.

Hoshiarpur

Una

Anandpur

Shri Takhat Keshgarh Sahib.

119.

Hoshiarpur

Una

Anandpur

Taragarh.

120.

Hoshiarpur

Una

Anandpur

Navin Padshahi Guru Tegh Bahadur.

121.

Hoshiarpur

Una

Anandpur

Bhora Sahib.

122.

Hoshiarpur

Una

Anandpur
Damdama Sahib.
123.
Hoshiarpur
Una
Lodhipur
Qila Anandgarh Sahib.
124.
Hoshiarpur
Una
Bhatoli
Charan Kanwal.
125.
Hoshiarpur
Una
Lohdipur
Lohgarh.
126.
Hoshiarpur
Una
Basali Nurpur
Basali.
127.
Hoshiarpur
Una
Anandpur
Holgarh.
128.
Hoshiarpur
Una
Agampur
Mata Jito Ji.
129.
Hoshiarpur
Una
Kalyanpur
Baba Gurditta Ji.
130.
Hoshiarpur
Una
Kiratpur
Shish Mahal.
131.
Hoshiarpur
Una
Kiratpur
Takhat Sahib.
132.
Hoshiarpur
Una
Kiratpur

Manji Sahib.

133.

Hoshiarpur

Una

Kiratpur

Hari Mandir Sahib.

134.

Hoshiarpur

Una

Kiratpur

Patalpuri.

135.

Hoshiarpur

Una

Kiratpur

Babangarh.

136.

Hoshiarpur

Una

Bhabaur

Bhabaur.

137.

Hoshiarpur

Una

Bathu

Gurplah.

138.

Hoshiarpur

Una

Kalmot

Kalmot.

139.

Hoshiarpur

Una

Chandpur

Chandpur.

140.

Hoshiarpur

Una

Jandbari

Jandbari.

141.

Hoshiarpur

Dasuya

Bodal

Gurna Sahib.

142.

Hoshiarpur

Hoshiarpur

Lehli Kalan

Jand Sahib.

143.

Hoshiarpur
Hoshiarpur
Bajraur
Harian Welan.

144.

Hoshiarpur
Hoshiarpur
Bhungarni
Bhungarni.

145.

Hoshiarpur
Hoshiarpur
Purhiran
Zahira Zahur.

146.

Hoshiarpur
Garshankar
Gond Pur
Tahli Sahib.

147.

Jullundur
Phillaaur
Mau
Mau.

148.

Jullundur
Nawanshahr
Pharala
Gurdwara Guru Hari Rai Sahib.

149.

Jullundur
Nawanshahr
Chak Guru
Gur Palah.

150.

Jullundur
Nawanshahr
Hakimpur
Nanaksar.

151.

Jullundur
Nawanshahr
Jindwal
Charan Kanwal.

152.

Jullundur
Nawanshahr
Sotran
Gurplah.

153.

Jullundur
Nawanshahr
Durgapur
Gurdwara Guru Hargobind.
154.
Ludhiana
Ludhiana
Gujarwal
Manji Sahib.
155.
Ludhiana
Ludhiana
Gujarwal
Guru Granth Sahib.
156.
Ludhiana
Ludhiana
Alimgir
Gurudwara Alamgir (Manji Sahib).
157.
Ludhiana
Ludhiana
Kanech
Gurdwara Manji Sahib.
158.
Ludhiana
Samrala
Machhiwara
Charan Kanwal.
159.
Ludhiana
Jagraon
Mohi
Mohi.
160.
Jagraon
Jagraon
Silowani
Gurdwara Silowani.
161.
Ludhiana
Jagraon
Raikot
Tanliana Sahib.
162.
Ludhiana
Samrala
Chuharpur
Jhar Sahib.
163.
Ludhiana

Jagraon
Sidhwan Kalan
Sri Guru Hargobind.
164.
Ludhiana
Jagraon
Sadhar
Gurdwara Sri Guru Hargobind and Guru Sar Chevin Padshahi.
165.
Ludhiana
Jagraon
Lama Jatpura
Gurdwara Guru Sar.
166.
Ludhiana
Jagraon
Chakar
Guru Sar.
167.
Ludhiana
Jagraon
Kaonke Kaln
Guru Sar.
168.
Ludhiana
Jagraon
Hehran
Hehran.
169.
Ferozepore
Ferozepore
Bazidpur
Guru Sar Bazidpur.
170.
Ferozepore
Ferozepore
Chak Fateh Singhwala
Gurdwara Guru Govind Singh.
171.
Ferozepore
Ferozepore
Nathana
Guru Sar Nathana.
172.
Ferozepore
Ferozepore
Mehraj
Guru Sar Mehraj.
173.
Ferozepore
Moga

Daroli Bhai
Dhera Daroli Bhai.

174.

Ferozepore
Moga
Lopon

Guru Sar.

175.

Ferozepore
Moga
Madoke

Guru Sar Madoke.

176.

Ferozepore
Moga
Wada Ghar

Chhevin Padshahi.

177.

Ferozepore
Moga
Takhtupura

Nanaksar.

178.

Ferozepore
Moga
Madya

Pakka Sahib.

179.

Ferozepore
Moga
Dina

Lohgarh Sahib.

180.

Ferozepore
Moga
Patto Hira Singh

Guru Sar.

181.

Ferozepore
Moga
Salina

Guru Sar.

182.

Ferozepore
Moga
Dagru

Tambu Mal.

183.

Ferozepore
Moga
Mehron

Mehron.

184.

Ferozepore

Moga

Banbiha Bhai

Nanak Sar.

185.

Ferozepore

Moga

Wandar

Guru Gobind Singh.

186.

Ferozepore

Moga

Smadh Bhai

Gurdwara Guru Granth Sahib Mohtmin Prem Das.

187.

Ferozepore

Moga

Mari Mustafa

Mari Mustafa.

188.

Ferozepore

Muktsar

Muktsar

Darbar Sahib.

189.

Ferozepore

Muktsar

Muktsar

Tambu Sahib.

190.

Ferozepore

Muktsar

Muktsar

Shahid Ganj.

191.

Ferozepore

Muktsar

Muktsar

Tibbi Sahib.

192.

Ferozepore

Muktsar

Sarai Nanga

Paihli Padshahi and Dusri Padshahi.

193.

Ferozepore

Muktsar

Rupana

Guru Sar.

194.
Ferozepore
Muktsar
Guru Sar
Guru Sar.
195.
Ferozepore
Muktsar
Thehari
Guru Gobind Singh.
196.
Ferozepore
Muktsar
Chhatiana
Guptsar and Sahib Chand.
197.
Ferozepore
Zira
Kho Kotla
Guru Sar.
198.
Ferozepore
Zira
Sunehr
Guru Sar.
199.
Ferozepore
Zira
Thatha
Chhevin Padshahi.
200.
..
..
..
..
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201.
Hissar
Sirsa
Sirsa
Gurdwara Guru Gobind Singh.
202.
Hissar
Sirsa
Dabwali
Guruasthan Dabwali.
203.
Hissar
Sirsa
Kewal
Kewal.

204.
Hissar
Fatehabad
Ratia
Ratia.
205.
Rohtak
Rohtak
Rohtak
Bangla Sahib (excluding temples of goddess Sitla and Manji Sahib).
206.
Rohtak
Gohana
Lakhan Mazra
Manji Sahib.
207.
Karnal
Karnal
Karnal
Manji Sahib.
208.
Karnal
Thanesar
Thanesar
Sidh Batti.
209.
Karnal
Thanesar
Thanesar
Chhevin Padshahi.
210.
Karnal
Thanesar
Bhari
Navin Padshahi.
211.
Karnal
Thanesar
Thanesar
Satvin Padshahi.
212.
Karnal
Thanesar
Thanesar
Dasvin Padshahi.
213.
Karnal
Thanesar
Thanesar
Kurchhetar.
214.

Karnal
Thanesar
Bani and Badarpur
Guru Teg Bahadur.
215.
Ambala
Ambala
Ambala City
Sis Ganj.
216.
Ambala
Ambala
Ambala City
Dasvin Padshahi Labhuwala.
217.
Ambala
Ambala
Ambala City
Dasvin Padshahi.
218.
Ambala
Ambala
Khurrampur Majri
Manji Sahib.
219.
Ambala
Ambala
Ambala City
Mohalla Mehr Dhumini.
220.
Ambala
Ambala
Panjokhra
Guru Har Kishan Sahib.
221.
Ambala
Ambala
Mardon
Mardon.
222.
Ambala
Ambala
Bhanon Kheri
Guru Gobind Singh Sahib.
223.
Ambala
Ambala
Sular
Sular.
224.
Ambala

Ambala

Chhani

Gurdwara Chhani.

225.

Ambala

Naraingarh

Raipur

Ranike Raipur and Manak Tabra.

226.

Ambala

Jagadhri

Bilaspur

Gurdwara Guru Gobind Singh Sahib in Gopal Mochan.

227.

Ambala

Jagadhri

Bilaspur

Bilaspur Gurdwara.

228.

Ambala

Jagadhri

Jagadhri

Gurdwara Jagadhri.

229.

Ambala

Jagadhri

Balachaur

Agampura.

230.

Ambala

Jagadhri

Sudhal

Sudhal.

231.

Ambala

Rupar

Chamkaur

Gurdwara of Damama Sahib Katalgarh, Tilak Asthan

232.

Ambala

Rupar

Kotla Nihang

Bhatta Sahib.

233.

Ambala

Rupar

Rupar

Rupar.

234.

Ambala

Rupar

Morinda

Morinda.

235.

Ambala

Rupar

Bur Majra

Bur Majra.

236.

Ambala

Rupar

Bir Guru

Jand Sahib.

237.

Ambala

Rupar

Saheri

Saheri.

238.

Ambala

Kharar

Mani Majra

Manji Sahib.

239.

Ambala

Kharar

Khizrabad

Khizrabad (Gurdwara Baba Zorawar Singh).

[240-241]

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242.

Patiala

Patiala

Budhmor

Gurdwara Sahib Padshahi Dasmi.

243.

Patiala

Patiala

Bahadurgarh

Gurdwara Sahib Padshahi Naumi.

244.

Patiala

Patiala

Lehal

Gurdwara Sahib Sri Dukhniwaran Sahib Padshahi Naumi.

245.

Patiala

Patiala

Patiala

Gurdwara Sahib Moti Bagh (including Gurdwara Sudhasar).

246.

Patiala

Patiala
Lehal
Gurdwara Khel Sahib.
247.
Patiala
Rajpura
Nathana Sahib Jand Mangoli
Gurdwara Sahib Padshahi Tesri.
248.
Patiala
Patialal K
Karhali
Gurdwara Sahib Padshahi Naumi.
249.
Patiala
Kandaghat
Panjaur
Gurdwara Sahib Panjaur Padshahi Pehli.
250.
Patiala
Kandaghat
Nada
Gurdwara Sahib Padshahi Dasmi.
251.
Patiala
Rajpura
Nabha
Gurdwara Sahib Padshahi Naumi.
252.
Patiala
Rajpura
Dhakauli
Gurdwara Sahib Padshahi Dasmi (Baoli Sahib).
253.
Patiala
Rajpura
Banur
Gurdwara Sahib Padshahi Dasmi.
254.
Patiala
Rajpura
Ugani
Gurdwara Sahib Padshahi Naumi and Dasmi.
255.
Patiala
Rajpura
Bhagrana
Gurdwara Sahib Padshahi Naumi.
256.
Patiala
Nabha

Simbron

Gurdwara Sahib Padshahi Naumi.

257.

Patiala

Rajpura

Loh Simbli

Gurdwara Sahib Padshahi Dasmi.

258.

Patiala

Rajpura

Loh Simbli

Gurdwara Sahib Baharla.

259.

Patiala

Rajpura

Narru

Gurdwara Sahib Padshahi Naumi.

260.

Patiala

Rajpura

Lachhru Kalan

Gurdwara Sahib.

261.

Patiala

Rajpura

Thuha

Gurdwara Sahib.

262.

Patiala

Rajpura

Tasimbli (Hamayon Pur)

Gurdwara Sahib Padshahi Naumi.

263.

Patiala

Rajpura

Nilpur

Gurdwara Sahib Smadh Bhai Sukha Singh.

264.

Patiala

Rajpura

Dhamoli

Gurdwara Sahib Padshahi Naumi.

265.

Patiala

Nabha

Rohta

Gurdwara Sahib Padshahi Chhemi.

266.

Patiala

Nabha

Nabha

Dera Baba Ajapal Singh.

267.

Patiala

Nabha

Bir Bauran

Gurdwara Dera Sahib (Damdama Sahib).

268.

Patiala

Nabha

Bauran Kalan

Gurdwara Sahib Padshahi Naumi.

269.

Patiala

Sirhind

Nau Lakha

Gurdwara Sahib Padshahi Naumi.

270.

Patiala

Sirhind

Atewali

Gurdwara Joti Sarup.

271.

Patiala

Sirhind

Harnam Nagar

Gurdwara Sahib Shahid Ganj.

272.

Patiala

Sirhind

Fatehgarh Sahib

Gurawara Fatehgarh Sahib (Shahid Asthan) Bab Fateh Singh Ji and Baba Jorawar Singh Ji Burj Mata Gujri.

273.

Patiala

Sirhind

Fatehgarh Sahib

Gurdwara Bibangarh Sahib.

274.

Patiala

Sirhind

Bahadurgarh

Gurdwara Sahib Bhai Sukha Singh Shahid.

275.

Patiala

Sirhind

Nandpur

Gurdwara Sahib Padshahi Naumi.

276.

Patiala

Sirhind

Akar

Gurdwara Sahib Padshahi Naumi.

277.

Patiala

Sirhind

Saunti

Gurdwara Sahib Padshahi Naumi.

278.

Patiala

Sirhind

Mandi Gobindgarh

Gurdwara Sahib Padshahi Chhemi (Har Gobindpura).

279.

Patiala

Sirhind

Kudani Kalan

Gurdwara Sahib Padshahi Chhemi.

280.

Patiala

Sirhind

Katana Sahib

Gurdwara Sahib Padshahi Chhemi and Dasmi.

281.

Patiala

Sirhind

Jandali

Gurdwara Sahib Padshahi Chhemi.

282.

Patiala

Patiala

Kotli

Gurdwara Sahib Jandsar.

283.

Sangrur

Malerkotla

Molowal

Gurdwara Sahib Padshahi Naumi.

284.

Sangrur

Sangrur

Shahpur Kalan

Gurdwara Sahib Padshahi Dasmi.

285.

Sangrur

Sangrur

Ganduan

Gurdwara Sahib Padshahi Naumi.

286.

Sangrur

Sangrur

Gagga

Gurdwara Sahib Padshahi Naumi.

287.

Sangrur
Sangrur
Makror
Gurdwara Sahib Padshahi Naumi.
288.
Sangrur
Sangrur
Moonak
Gurdwara Sahib Padshahi Naumi.
289.
Sangrur
Sangrur
Jharon
Gurdwara Sahib Padshahi Dasmī.
290.
Sangrur
Sangrur
Anwala
Gurdwara Sahib Padshahi Naumi.
291.
Sangrur
Sangrur
Allauarkh
Gurdwara Sahib Padshahi Naumi (Manji Sahib).
292.
Patiala
Patiala
Behar Jachh
Gurdwara Sahib Padshahi Naumi.
293.
Sangrur
Sangrur
Kamal Pur
Gurdwara Sahib Padshahi Chhemi.
294.
Sangrur
Sangrur
Lehra Mandi
Gurdwara Sahib Guru Granth Sahib.
295.
Sangrur
Sangrur
Longowal
Gurdwara Sahib Baba Ala Singh.
296.
Sangrur
Sangrur
Longowal
Gurdwara Sahib Bhai Mani Singh.
297.
Sangrur

Sangrur
Longowal
Gurdwara Bhai Ki Samadh.
298.
Sangrur
Sangrur
Shahpur Kalan
Gurdwara Sahib Padshahi Naumi.
299.
Sangrur
Sangrur
Chima
Gurdwara Sahib Guru Granth Sahib.
300.
Sangrur
Sangrur
Chima
Gurdwara Nanaksar.
301.
Sangrur
Sangrur
Jhakherpal Kambalwas
Gurdwara Sahib Bhai Ka Barsal Pati.
302.
Sangrur
Sangrur
Sunam
Gurdwara Bhai Mul Chand.
303.
Sangrur
Sangrur
Chhajli
Gurdwara Sahib Padshahi Naumi and Dasmi.
304.
Sangrur
Sangrur
Chhabi
Gurdwara Guru Granth Sahib.
305.
Sangrur
Sangrur
Bhawanigarh
Gurdwara Sahib Padshahi Naumi.
306.
Sangrur
Sangrur
Kamalpur
Gurdwara Sahib Padshahi Dashmi.
307.
Sangrur
Sangrur

Kamalpur

Gurdwara Sahib Padshahi Naumi.

308.

Sangrur

Sangrur

Nankiana

Gurdwara Sahib Padshahi Pehli.

309.

Sangrur

Sangrur

Akoi

Gurdwara Sahib Padshahi Naumi.

310.

Sangrur

Sangrur

Khurana

Gurdwara Sahib Padshahi Chhemi.

311.

Sangrur

Sangrur

Dirbha

Gurdwara Sahib Padshahi Naumi.

312.

Sangrur

Sangrur

Phagguwala

Gurdwara Sahib Padshahi Naumi.

313.

Sangrur

Narwana

Tal Ghanaur

Gurdwara Dukhniwaran Sahib Padshahi Pehli, Chhemi and Naumi

314.

Sangrur

Narwana

Dhamtan

Gurdwara Padshahi Naumi at Dhamtan along with Bunga Dhamtanian near Railway Station, Patiala.

315.

Sangrur

Narwana

Kharak Bhura

Gurdwara Sahib Padshahi Naumi.

316.

Sangrur

Narwana

Khatkaran

Gurdwara Sahib Padshahi Naumi.

317.

Sangrur

Barnala

Gahel

Gurdwara Sahib Padshahi Chhemi.

318.

Sangrur

Barnala

Bhadaur

Gurdwara Sahib Padshahi Chhemi and Dasmi (Andruni Qila).

319.

Sangrur

Barnala

Handiaya

Gurdwara Sahib Padshahi Naumi (Guru Sar).

320.

Sangrur

Barnala

Pharwahi

Gurdwara Sahib Padshahi Naumi.

321.

Sangrur

Barnala

Sekha

Gurdwara Sahib Padshahi Chhemi (Manji Sahib).

322.

Sangrur

Barnala

Kattu

Gurdwara Sahib Padshahi Naumi.

323.

Sangrur

Malerkotla

Kanjala

Gurdwara Sahib Padshahi Pehli.

324.

Sangrur

Barnala

Dhaura

Gurdwara Sahib Padshahi Naumi (Sohiana).

325.

Bhatinda

Bhatinda

Bhai Rupa.

Gurdwara Sahib Padshahi Chhemi.

326.

Bhatinda

Bhatinda

Dayal Pura Bhai Ka

Gurdwara Sahib Padshahi Chhemi and Dasmi.

327.

Bhatinda

Bhatinda

Dayal Pura Bhai Ka

Gurdwara Sahib Padshahi Dasmi.

328.

Sangrur

Barnala

Badra

Gurdwara Guru Granth Sahib.

329.

Sangrur

Barnala

Handiaya

Gurdwara Sahib Padshahi Naumi (Arisar).

330.

Sangrur

Barnala

Mauran

Gurdwara Sahib Padshahi Naumi Dulamsar along with Gurdwara Khuhi Singh Wali.

331.

Sangrur

Barnala

Maur Kalan

Gurdwara Sahib (Kalle Da Khuh).

332.

Sangrur

Barnala

Dhillwan

Gurdwara Sahib Padshahi Naumi.

333.

Sangrur

Barnala

Thikriwala

Gurdwara Sahib Padshahi Dasmi (Panchaiti).

334.

Sangrur

Barnala

Paudharen

Gurdwara Sahib Padshahi Naumi (Manji Sahib).

335.

Sangrur

Barnala

Bhadaur

Gurdwara Sahib Padshahi Dasmi.

336.

Sangrur

Barnala

Bhadaur

Gurdwara Sahib Padshahi Chhemi.

337.

Sangrur

Barnala

Sanghera

Gurdwara Sahib Dera Patti Khara and Gurdwara Sahib Dera Patti Sujja.

338.

Bhatinda
Bhatinda
Bhagat Bhai Ka
Gurdwara Sahib Padshahi Chhemi.
339.
Sangrur
Barnala
Kaleke
Gurdwara Sahib Nanakwara.
340.
Sangrur
Jind
Singhpura
Gurdwara Sahib Padshahi Dasmi.
341.
Sangrur
Jind
Jind
Gurdwara Sahib Padshahi Naumi.
342.
Sangrur
Barnala
Diwana
Gurdwara Sahib Dera Chuli Smadh Baba Ogand.
343.
Bhatinda
Bhatinda
Maur Kalan
Gurdwara Sahib Padshahi Naumi.
344.
Bhatinda
Bhatinda
Maluka
Gurdwara Sahib Padshahi Naumi Taruana.
345.
Bhatinda
Bhatinda
Rajgarh Kubbe
Gurdwara Sahib Padshahi Naumi (Talla Sahib).
346.
Bhatinda
Bhatinda
Haji Rattan
Gurdwara Sahib Padshahi Dasmi.
347.
Bhatinda
Bhatinda
Pakka Kalan
Gurdwara Sahib Padshahi Dasmi.
348.
Bhatinda

Bhatinda

Bhatinda

Gurdwara Sahib Padshahi Dasmi Qila Mubarik.

349.

Bhatinda

Bhatinda

Bhagu

Gurdwara Sahib Padshahi Dasmi.

350.

Bhatinda

Bhatinda

Jassi-Baghwali

Gurdwara Sahib Padshahi Dasmi.

351.

Bhatinda

Bhatinda

Bechak

Gurdwara Sahib Padshahi Dasmi.

352.

Bhatinda

Bhatinda

Pathrala

Gurdwara Sahib Padshahi Dasmi.

353.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sahib Padshahi Dasmi and Naumi (Damdama Sahib).

354.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sahib Takhat Sri Damdama Sahib, Jandsar and Bunga Kuttuwala.

355.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sahib Damdama Sahib Bunga Mata Sahib Dewan Ji.

356.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sahib Padshahi Dasmi (Takht Damdama Sahib).

357.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sahib Bhai Bir Singh Dhir Singh Mazhabi Singhan Wala.

358.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sahib Takht Sri Damdama Sahib Malwai Bunga Padshahi Dasmi.

359.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sri Damdama Sahib Bunga Likhansar Padshahi Dasmi.

360.

Bhatinda

Bhatinda

Talwandi Sabo

Gurdwara Sri Holsar Sahib Padshahi Dasmi.

361.

Bhatinda

Faridkot

Malla

Gurdwara Sahib Padshahi Dasmi.

362.

Bhatinda

Faridkot

Jaitu

Gurdwara Sahib Padshahi Dasmi (Gangsar).

363.

Bhatinda

Faridkot

Jaitu

Gurdwara Sahib Shahib Ganj (Tibbi Sahib).

364.

Bhatinda

Bhatinda

Ram Tirath Jagga

Gurdwara Sahib Padshahi Dasmi (Gurusar).

365.

Bhatinda

Faridkot

Behbal Kalan

Gurdwara Sahib Padshahi Dasmi.

366.

Bhatinda

Bhatinda

Kot Shamir

Gurdwara Sahib Padshahi Dasmi (Gurusar).

367.

Bhatinda

Bhatinda

Kot Shamir No. 2.

Gurdwara Sahib Padshahi Dasmi.

368.

Bhatinda

Bhatinda

Jeon Singh Wala

Gurdwara Sahib Padshahi Dasmi.

369.

Bhatinda

Bhatinda

Maisar Khana

Gurdwara Sahib Padshahi Naumi.

370.

Bhatinda

Bhatinda

Maisar Khana

Gurdwara Sahib Padshahi Dasmi (Thittarsar).

371.

Bhatinda

Bhatinda

Kotha Gur

Gurdwara Sahib Guru Kaul Sahib Padshahi Dasmi.

372.

Bhatinda

Bhatinda

Gumti (Kotha Guru)

Gurdwara Sahib Padshahi Chhemi (Jandsar).

373.

Bhatinda

Faridkot

Malla

Gurdwara Sahib Padshahi Chhemi (Chabutra Sahib).

374.

Bhatinda

Bhatinda

Amaragrah alias Jhubluti

Gurdwara Sahib Padshahi Satmi (Amargarh).

375.

Bhatinda

Bhatinda

Kotha Guru

Gurdwara Sahib Padshahi Dasmi (Gangsar).

376.

Bhatinda

Faridkot

Dod

Gurdwara Sahib Padshahi Dasmi (Harsar).

377.

Bhatinda

Faridkot

Dod

Gurdwara Sahib Padshahi Chhemi and Dasmi (Dhauksar).

378.

Bhatinda

Faridkot

Lambwali

Gurdwara Sahib Padshahi Pehli.

379.

Bhatinda

Faridkot

Bargari

Gurdwara Sahib Padshahi Dasmi.

380.

Bhatinda

Mansa

Ralla

Gurdwara Sahib Padshahi Naumi.

381.

Bhatinda

Mansa

Jhanda Kalan

Gurdwara Sahib Padshahi Dasmi (Jhanda Sahib).

382.

Bhatinda

Mansa

Kot Dharmun

Gurdwara Sahib Padshahi Naumi (Sulisar).

383.

Bhatinda

Mansa

Khewa Kalan

Gurdwara Sahib Padshahi Naumi.

384.

Bhatinda

Mansa

Bhikhi

Gurdwara Sahib Padshahi Naumi.

385.

Bhatinda

Mansa

Samaon

Gurdwara Sahib Padshahi Naumi.

386.

Bhatinda

Mansa

Joga

Gurdwara Sahib Padshahi Naumi.

387.

Bhatinda

Mansa

Malakpur Khiala

Gurdwara Sahib Padshahi Naumi.

388.

Bhatinda

Mansa

Bareh

Gurdwara Sahib Padshahi Naumi.

389.

Bhatinda

Mansa

Akbarpur Khudal

Gurdwara Sahib Padshahi Dasmi (Bhora Sahib).

390.

Bhatinda

Mansa

Fafre Bhai Ke

Gurdwara Sahib Padshahi Dasmi (in momory of Bhai Behlo Jee).

391.

Bhatinda

Bhatinda

Gill Kalan

Gurdwara Sahib Padshahi Chhemi.

392.

Bhatinda

Mansa

Bachhaona

Gurdwara Sahib Padshahi Dasmi.

393.

Bhatinda

Mansa

Fafre Bhaike

Gurdwara Sahib.

394.

Bhatinda

Bhatinda

Mehma Sarja

Gurdwara Sahib Lakhi Jangal.

395.

Bhatinda

Faridkot

Kotkapura

Gurdwara Sahib Padshahi Dasmi.

396.

Bhatinda

Faridkot

Birewal Kalan

Gurdwara Sahib Padshahi Dasmi (Jand Sahib).

397.

Bhatinda

Faridkot

Gurusar

Gurdwara Sahib Padshahi Dasmi (Gurusar).

398.

Bhatinda

Faridkot

Ramiana

Gurdwara Sahib Padshahi Dasmi .

399.

Kapurthala

Kapurthala
Sultanpur Lodhi
Gurdwara Sahib Padshahi Pehli (Ber Sahib).
400.
Kapurthala
Kapurthala
Sultanpur Lodhi
Gurdwara Sahib Padshahi Pehli (Hat Sahib).
401.
Kapurthala
Kapurthala
Sultanpur Lodhi
Gurdwara Sahib Padshahi Pehli (Kothri Sahib).
402.
Kapurthala
Kapurthala
Randhirpur
Gurdwara Sahib Sant Ghat.
403.
Kapurthala
Kapurthala
Sultanpur Lodhi
Gurdwara Sehra Sahib.
404.
Kapurthala
Kapurthala
Sultanpur Lodhi
Gurdwara Sahib Guru Ka Bagh.
405.
Kapurthala
Kapurthala
Sultanpur Lodhi
Gurdwara Sahib Padshahi Chhemi.
406.
Kapurthala
Kapurthala
Dalla
Gurdwara Sahib Padshahi Panjmi and Parkash Asthan Bhai Lalo.
407.
Kapurthala
Phagwara
Lakhpur
Gurdwara Guru Granth Sahib.
408.
Kapurthala Kapurthala
Nadala
Gurdwara Sahib Padshahi Chhemi
.
409.
Kapurthala
Phagwara

Chaura Khuh (Phagwara)
Gurdwara Sahib Padshahi Chhemi.

410.

Kapurthala

Phagwara

Phagwara East

Gurdwara Sahib Padshahi Chhemi.

411.

Kapurthala

Phagwara

Bubeli

Gurdwara Sahib (Chaunta Sahib).

412.

Kapurthala

Phagwara

Dumeli

Gurdwara Sahib Padshahi Chhemi (Tham Sahib).

413.

Kapurthala

Phagwara

Palahi

Gurdwara Sahib Padshahi Chhemi.

414.

Mohindergarh

Mohindergarh

Mohindergarh

Gurdwara Sahib Padshahi Naumi (Bhore Sahib).

415.

Mohindergarh

Mohindergarh

Narnaul City

Gurdwara Sahib Padshahi Naumi.

* Column six headed "Constituencies for Election of Committee of Management" omitted by Punjab Act 1 of 1959, section 50.

** Omitted by the Indian Independence (Adaptation of Bengal and Punjab Acts), Order, 1948, (G.G.O. 40).

*** Substituted for the word "Lahore" by ibid.

**** Substituted for the word "Kiratpur" by section 10 of Punjab Act

3 of 1930

. This amendment shall have effect as if made on 1st November, 1925. - vide section 11 of Punjab Act

3 of 1930

.

***** Gurdwaras at serial numbers 242 to 415 added by Punjab Act 1 of 1959, section 50.

***** Substituted by Punjab Act

10 of 1959

, section 7.

***** Substituted by Punjab Act

No. 10 of 1961

, section 2, with effect from 8th January, 1959.

II

(See Section 7)

Serial No.

District

Revenue Estate

Name of Institution.

[1-3]

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..

4.

Amritsar

Amritsar City

Akhara Santokh Das Mahant Brahm Buta.

5.

Amritsar

Civil Procedure Code

Akhara Bala Nand.

6.

Amritsar

Amritsar City

Akhara Pritam Das or Nirban Katra.

7.

Amritsar

Civil Procedure Code

Akhara Kanshiwala.

8.

Amritsar

Civil Procedure Code

Akhara Beriwala.

9.

Amritsar

Amritsar City

Akhara Chattewala.

10.

Amritsar

Amritsar City

Akhara Chitta.

11.

Amritsar

Amritsar City

Akhara Nirban Bawa Tehldas.

12.

Amritsar

Amritsar City

Akhara Kanihiwala Ghi Mandi.

13.

Amritsar

Amritsar City

Akhara Bibeksar.

14.

Amritsar

Amritsar City

Akhara Sangalwala.

15.

Amritsar

Amritsar City

Dera Mahant Misra Singh.

16.

Amritsar

Amritsar City

Dera Thakran.

17.

Amritsar

Amritsar City

Dera Antarjamian .

18.

Amritsar

Amritsar City

Dera Bhai Parduman Singh.

19.

Amritsar

Amritsar City

Nirmal Chhetar.

20.

Amritsar

Amritsar City

Dera Mahant Gurmukh Singh.

21.

Amritsar

Amritsar City

Dera Punchian.

22.

Amritsar

Amritsar City

Dera Mahant Bahawal Singh.

23.

Amritsar

Amritsar City

Dera Giani Bakhshish Singh.

24.

Amritsar

Amritsar City

Dera Mahant Basant Singh.

25.

Amritsar

Amritsar City

Dera Baba Budh Singh.

26.

Amritsar

Amritsar City

Dera Sainlok Ram Singh.

27.

Amritsar

Amritsar City

Dera Warianwala.

28.

Amritsar

Amritsar City

Dera Bab Joga Singh.

29.

Amritsar

Amritsar City

Dera Bhai Sewa Singh.

30.

Amritsar

Amritsar City

Dharamsala Mai Sarsati .

31.

Amritsar

Amritsar City

Dera Chatterwala.

32.

Amritsar

Amritsar City

Dharamsala Brahm Huzura, opposite Akhara Balanana.

33.

Amritsar

Amritsar City

Dharamsala Bawa Rattan Hari.

34.

Amritsar

Amritsar City

Dharamsala Baba Mela Ram.

35.

Amritsar

Amritsar City

Dharamsala Bab Har Das.

36.

Amritsar

Amritsar City

Dera Gyani Babek Singh.

37.

Amritsar

Tarn Taran

Dera Bhai Tara Singh.

38.

Gurdaspur

Shankarpur

Dera Sant Mohan Singh.

39.

Gurdaspur

Qadian

Dera Sant Nihal Singh.

40.

Gurdaspur

Batala

Dera Bagh Bawa Saran Das.

(Revenue estate No. 211)

.

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.

70.

Hoshiarpur

Bhadurpur

Dera Baba Charan Shah.

71.

Hoshiarpur

Daffar

Dhakki.

72.

Hoshiarpur

Khuddah

Dehra.

73.

Hoshiarpur

Tanda

Mastgarh.

74.

Hoshiarpur

Tooto Mazara

Dharamsala.

75.

Hoshiarpur

Maili

Chini Ghati.

76.

Jullundur

Alawalpur

Dera Maru Das.

77.

Ludhiana

Bhaini

Bhaini Sahib.

78.

Ludhiana

Baraich

Dera Guru Parshad.

79.

Ludhiana

Gurah

Dera Puran Das.

80.

Ferozepore

Smadh Bhai

Dera Guru Granth Sahib, Gurmukh Das Mohtamin.

81.
Ferozepore
Gholia Khurd
Dera Bhai Gulab Singh.
82.
Ferozepore
Nathuwala
Dera Bhai Bhajan Singh.
83.
Ferozepore
Daodar
Dera Bhai Mangal Singhwala.
84.
Ferozepore
Rania
Dera Bhai Khalak Singh.
85.
Ferozepore
Muktsar
Dera Bhai Mastan Singh.
86.
Ferozepore
Harike Kalan
dera Bhai Ran Singh.
87.
Ferozepore
Sekhwan
Dera Sekhwan.
88.
Hissar
Rohri
Dera Mehant Bishudhanand.
89.
Hissar
Kewal
Dera Kewal.
90.
Hissar
Kalanwali
Dera Kalanwali.
91.
Hissar
Takhtmal
Dera Mahant Chhetanand.
92.
Karnal
Shahabad
Dera Sadh Charan Das, Devi Tal.
93.
Karnal
Thanesar

Bara Akhara.

94.

Karnal

Thanesar

Chhota Akhara, Kurukshetra.

95.

Karnal

Thanesar

Dera Kumerwala (known as Dera Mahant Sampuran Singh).

96.

Karnal

Sirsala

Dera Sadh Charan Das.

97.

Karnal

Fatehgarh Jharauli

Dera Fatehgarh Jharauli.

98.

Karnal

Lakhmari

Dera Bishan Das Sadh.

99.

Karnal

Sagri

Dera Asthal Ram Kishan Sadh.

100.

Karnal

Ladwa

Dera Bawa Prem Dass.

101.

Karnal

Kanipla

Dera Sadh Jamma Das.

102.

Karnal

Khurdwan

Dera Udasian.

103.

Karnal

Umri

Dera Udasian.

104.

Karnal

Bapdi

Dera Harnam Das Sadh.

105.

Karnal

Jogi Mazra

Dera Sadhni.

106.

Karnal

Khera Sudhpur

Dera Sadh Lachhman Dass.

107.

Karnal

Bapauli

Dera Sadh Mohan Das.

108.

Karnal

Mehra

Dera Sadhni.

109.

Karnal

Nalvi

Mahman Singh.

110.

Karnal

Pehowa

Dera Mahant Charan Dass (known as Chhota Akhara).

111.

Karnal

Pehowa

Dera Mahant Deva Das (known as Bara Akhara).

112.

Karnal

Pehowa

Dera Mahant Thaman Das (known as Dera Nirmala).

113.

Karnal

Arnauli

Dea Udasain.

114.

Karnal

Arnauli

Dera Nirmala Sikhan, Bhagal.

115.

Karnal

Shamgarh

Dera Udasian.

116.

Karnal

Fatehgarh

Dera Prem Das.

* Omitted by the Indian Independence (Adaptation of Bengal and Punjab Acts) Order of 1948 (G.G.O. 40)

III

(See Section 35)

* Added by Punjab Act No. 53 of 1953, Section 28.

** Added by Punjab Act No. 42 of 1953, Section 4.

Shedule IV [Omitted]

Related AI tags, queries and research notes

Translation